

WEEK 2

Indian Society and Politics, 1935-40



United Provinces' Politics, 1938:
Congress in Mid-Term

*Governors' Fortnightly Reports
and other Key Documents*

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MANOHAR
2009

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DONALDSON TO LAITHWAITE

R/3/1/73

Confidential.

D.O. No. 1051-G.S.P.

Camp,

February 16th, 1938

My dear Laithwaite,

His Excellency wishes me to send you, for the information of His Excellency the Governor-General, the enclosed copy of the letter of resignation which Pant handed to him about 7-30 p.m. last night when he and his colleagues came to Government House to say good-bye. They were very much later than the time which they had originally indicated. The published official communiqué which had been discussed with you was of course prepared without reference to this letter or knowledge of its contents, but it was decided to issue it as it stood.⁴⁹

With regard to the assumptions made about the attitude of His Excellency, he wishes me to say that at yesterday's Cabinet meeting he had merely communicated to the Cabinet the substance of paragraph 1 of His Excellency the Governor-General's telegram No. 209-G. of 15th February.⁵⁰ I had spoken to you about this on the telephone and made certain that the contents of this paragraph might be communicated to the Ministers. There was no discussion, at this meeting, of His Excellency's attitude in regard to the Provincial situation. At the previous Cabinet meeting on February 14th His Excellency had been careful, in accordance with paragraph 2 of the Governor-General's telegram of February 12th,⁵¹ to avoid saying to the Ministers that he was rejecting their advice for reasons based on Provincial conditions. He had also avoided saying that he did not consider that his own special responsibility was attracted. This point was left in the air after he had stressed the objections to the course which they were proposing.

Their personal attitude when they said good-bye was extremely friendly and regretful. We hear that after the Cabinet meeting in the morning they telephoned to Haripura and only finally decided on resignation on receiving instructions from there.

Yours sincerely,

J.C. DONALDSON

ENCLOSURE TO NO. 15

PANT TO HAIG

Lucknow,

February 15th, 1938

Dear Sir Harry Haig,

As Your Excellency has now intimated to me and my colleagues that in compliance with the orders issued to you by the Governor-General under Section 126(5) of the Government of India Act you are bound to reject the advice which we thought it our duty to tender to you in regard to the release of political prisoners, we think that the only course open to us is to tender our resignation which we hereby do. The issue now raised is of the widest importance both from the constitutional and administrative point of view.

The release of political prisoners has formed a prominent part of the Congress programme throughout. It was distinctly mentioned in the Congress election manifesto, and the electorate in overwhelming numbers has supported the demand of the Congress. It was again urged in the resolutions passed by the Convention in Delhi in March last year.⁵² The British Government must therefore have been fully aware of the Congress policy and its implications in regard to this matter. It is unthinkable that the Governor-General should not have realised that the Congress whenever it accepted office would take the earliest opportunity to implement the Congress programme and to honour its pledges. The Congress was invited to accept office with a full knowledge of all these facts. An assurance was also definitely held out that the Congress in office would be free to carry out its programme. It is exceedingly strange that when after prolonged and patient consideration and discussion we proceed to give effect to the Congress policy the Governor-General issues his orders under Section 126 to thwart the Congress Ministry in this Province in this matter. The reasons which have weighed with the Governor-General in taking this decision are not known to us and in spite of our request to Your Excellency you expressed your inability to disclose them to us. The responsibility for maintaining law and order in the Province is that of the Ministers. No Council of Ministers can discharge its functions satisfactorily if its considered opinion is disregarded arbitrarily in respect of momentous questions strictly falling within their purview by outside authority and when even the courtesy of mentioning the grounds on which such

interference is sought is not shown to it. It is inconceivable that the release of no more than 15 political prisoners some of whom were mere boys when they were convicted and several of whom have undergone long terms of imprisonment and are due to be released within a few months in the usual course can be a grave menace to the peace and tranquillity of any Province in India. We have every reason to believe and are definitely assured that they have abjured the path of violence. The jail authorities have formed a similar impression after a close observation of individual prisoners in their charge. We have discussed this question on numerous occasions with Your Excellency and we are inclined to believe that you have come at least to appreciate our point of view. The decision of the Governor-General is attributed to extra-provincial affairs, and it is significant that action has been taken under Section 126 and not under Section 54 which suggests that the Governor of the Province does not consider that there is any menace to the peace and tranquillity inside the Province itself. There is an insistent demand in the country for the release of these prisoners and it has been forcefully voiced in our own Assembly by all sections from time to time. Their non-release is apt to disturb the peaceful atmosphere, to engender tension and to hamper the growth of the non-violent spirit. The Burma Government has recently released all the rebellion prisoners. A general release of all political prisoners followed in 1921 immediately after the introduction of Dyarchy in the Provinces. We have had occasion to discuss this question in all its aspects with you during the last seven months. While there have been hunger-strikes in every other Province, the prisoners here have refrained from doing so and have reposed their trust in us. We had far-reaching and comprehensive programmes of agrarian reforms, rural development, jail reform, overhaul of local self-governing bodies, education, prohibition and excise reform and several other large issues which called for a tranquil atmosphere for their solution. This interference on the part of the Governor-General in the ordinary administration of the Province raises a constitutional issue of the gravest import, and instead of promoting peace and tranquillity is likely to imperil it not only in this Province but elsewhere in India also. In our considered judgment their release is essential in the public interest and the Governor-General has by his order disabled us from performing our elementary duty in this respect. We look upon this interference as an utter abuse even of the provisions of Section 126(5) and it brings vividly home to us the unsubstantial character of the autonomy which the Provinces are supposed to enjoy, when the advice of the Council of Ministers³³ can be trampled upon by one entirely outside the Province and having no direct contacts

with it and no live part in its affairs. In the circumstances there is no alternative to the course which we have taken, and we would request you to accept this resignation.

Yours sincerely,
G.B. PANT

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HAIG TO LINLITHGOW
R/3/1/73

Secret
No. U.P.-56

February 16th, 1938

My dear Lord Linlithgow,

With reference to Your Excellency's telegram No. 215-G., dated 15th February 1938,³⁴ no more points have occurred to me in connection with the Proclamation under Section 93 which require further discussion.

2. With regard to Advisers I have been thinking the matter over carefully in the light of the existing situation. As a result of the Congress Ministry's term of office the work of the Provincial Government has increased immensely, and though a good deal of this work could be reduced again if I took over charge under Section 93, there will remain a number of major problems which have been raised by the Congress Ministry and cannot possibly be dropped. Indeed, my feeling is very strong that in the matter of general policy I should endeavour to maintain a large degree of continuity and to avoid abrupt reactions. This will mean, for instance, that I must pursue the search for a satisfactory tenancy policy, that I must carry out with such amendments as may be necessary the main outlines of the rural development plans, very possibly that I should continue with a great deal of the temperance policy, though dropping the actual prohibition proposals. These are only illustrations of the large questions that will have to be handled. I am quite clear, after reflecting on the situation, that it would be impossible for me to do justice to these problems in addition to the difficult questions of law and order that are bound to arise with only two Advisers, and that it is essential to have three. I should propose to appoint Bomford and Gwynne as already reported to Your Excellency. Both of them were going on leave this summer; but I shall have to ask them to forego their leave and I do not think there will be any difficulty in the matter. For the third Adviser it seems to me essential to have an Indian, both from the

hope they will agree now to appoint an official in his place.

7. Another matter in which events appear to be changing the views of the Ministers is the flying of flags on buildings of local bodies. When the Congress Ministry first came in, they initiated a regular campaign for Congress flags being flown in this way, and the Ministers themselves were constantly taking part in ceremonial hoisting of flags on municipal and district board buildings. Since however the Muslim League have been claiming to fly their flag in the same way, and also the communists, there has been a great cooling off on the Congress side in regard to this principle of flag flying, and it is not impossible that they may eventually, in order to avoid the considerable embarrassment that is now being experienced, adopt the principle of refusing to allow local bodies to display party emblems.

8. I fear there may be a good deal of communal friction during the next few weeks owing to the near conjunction of Muharram and Holi. I have just heard that the Muharram has started rather inauspiciously in Allahabad with an attack by Muslims on a Hindu marriage procession.

Yours sincerely,
HARRY HAIG

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HAIG TO LINLITHGOW
R/3/1/73

Secret

No. U.P.-63

March 23rd, 1938

My dear Lord Linlithgow,

The matter which has almost monopolised interest during the last fortnight has been the communal situation. As I mentioned in my letter No. U.P.-61, dated March 9th, the Muharram started inauspiciously in Allahabad with an attack by Muslims on a Hindu marriage procession. Feeling was very strained in Allahabad during the whole Muharram period, but strong and impartial handling of the situation by the local authorities was successful in avoiding any serious outbreak of trouble, though on more than one occasion trouble was very narrowly averted. Throughout the Province there was a great deal of tension during the Muharram period, and in more than one place there were short-lived disturbances. We were just beginning to congratulate ourselves on having got through this very difficult time when

the Holi celebrations coming immediately on top of the Muharram led to unfortunate outbreaks, first at Benares and almost immediately afterwards at Allahabad. In both places the situation was very well handled by the local officers and most valuable and cordial assistance was rendered by the military. In the case of Benares, the normal garrison of which is not adequate to deal with any serious trouble, two extra companies of British troops were sent over promptly as a reinforcement. In Allahabad the troops were employed freely in the city throughout the period of tension and subsequent disturbances, and their presence had a very steady effect. In Benares the situation returned to normal fairly quickly, but in Allahabad the long period of tension during the Muharram had created conditions in which certain members of the two communities were ready to be at each other's throats and considerable panic also prevailed. The result was that the trouble continued longer than might have been expected. In neither place, however, was there anything in the nature of a serious riot, though the police opened fire on one occasion in Allahabad, and the deaths were to a large extent due to isolated assaults and stabbings. I think in both towns now it is safe to conclude that the trouble is over.

2. The Ministry behaved in a most sensible way over these disturbances. Indeed, the situation was handled in effect just as it would have been under the old conditions. In both cities we had capable and reliable officers. The Ministry did not attempt to dictate to them how they were to handle the situation. They kept closely in touch with what was going on and gave every assistance that was required in the way of providing extra temporary staff. But they did not fuss the officers on the spot with unnecessary suggestions, and made it clear that they would support them in whatever action the situation called for. Two Ministers were present in Allahabad during part of the time, but they behaved with the most commendable restraint, and made no attempt to interfere with the handling of the situation by the District Magistrate. In these circumstances the political attack made upon the Ministry yesterday in the Assembly by the Muslim League was very unfair. The Muslim League in the course of a motion of adjournment suggested that the Ministry had not taken all reasonable steps to maintain order and that local officers were afraid to act impartially for fear of offending the Congress Government. This was deliberate falsity to a degree which even the manoeuvres of politics can hardly excuse. I enclose two interesting and reasonable editorial comments by the *Leader* about the communal troubles and their handling.

3. At the same time it is interesting to consider what are the real causes of the very bad feeling which prevails at present throughout the Province

between the Hindus and Muslims, and which manifested itself almost inevitably in these outbreaks. To my mind they are to be found in the present political grouping. As I have mentioned more than once, a position in which practically the whole of the important minority community of Muslims is ranged in the legislature in opposition to the Government is bound to lead to serious communal friction. The minority cannot get their own way in the legislature, and as a permanent communal minority have no prospect of ever getting it, and they are tempted inevitably to redress the weakness of their parliamentary position by rousing religious feelings and emphasizing the importance of the community outside the legislature, even at the risk of communal outbreaks. This is the Muslim contribution to the trouble. But the Muslims are not solely responsible for the ill feeling. There is also a reverse side to the picture. The Hindus have been undoubtedly elated by the establishment of what is in effect a Hindu Government. There is a good deal of popular feeling that this is Hindu raj, and several officers have told me that they think the Hindu attitude towards communal questions has been aggressive lately. The Holi is particularly a time when provocation is likely to be given to other communities. The Ministry undoubtedly find these conditions an embarrassment, and it remains to be seen whether anything will be done to revive the ideas of a coalition between the Congress and Muslim League, without which I should anticipate that this state of communal tension will continue and will come to a head again whenever there is a provoking cause, which is bound to arise not infrequently.

4. I have frequently referred to the Madhe Sahaba dispute in Lucknow between Sunnis and Shias. It had been decided to publish the report of the committee and the conclusions of Government on it on the 19th March, but the Government decided, wisely I think, not to run the risk of further disturbances at a time when the demands on the police were very considerable. They therefore postponed publication again, and it is now intended to publish on the 26th.¹

5. Twelve out of the fifteen political prisoners who were the cause of the Ministerial crisis have now been released. Little public attention has been paid to them and they themselves have behaved with restraint. Of the remaining three I have received notes from the Ministers about two, and I think they are likely to be released within the next few days. The third is hardly a political case at all, but I think the Ministers will feel bound in view of what has gone before to release him.

6. There have been reports recently from Cawnpore that the extreme labour leaders are getting active again in anticipation of the publication of

the report of the Inquiry Committee. The Employers' Association sent in a representation complaining that dangerous incitements were being made and that intimidation was once more beginning to manifest itself. Cawnpore, however, has remained perfectly quiet during the Muharram-Holi period. The Enquiry Committee's report has now, I understand, been signed and the Government will be faced with important problems of policy. The prospects for something like an amicable settlement seem decidedly brighter than they were some months ago, but there are of course many influences working against peace, and the extremists will certainly try to provoke a strike.

7. Land revenue realisations continue to be satisfactory, and I think we may now assume that the danger which at one time threatened, that there would be refusal on a considerable scale to pay rent, has now passed. We have had two important Cabinet meetings to consider the general tenancy and revenue policy of the Government. A great many of the proposals are very reasonable. In certain respects what they propose will be decidedly unwelcome to the landlords, but I think it possible that on certain points the Ministry may compromise if faced with strong and convincing opposition. With regard to further taxation of the landlords, the decision is not to impose any agricultural income-tax on the landlords of temporarily settled areas but to raise the maximum pitch of land revenue from 40 per cent of assets to 55 per cent, and to allow for a good deal of graduation among those revenue payers whose land revenue at 55 per cent would come to Rs. 2,000 or less. For the small cultivating proprietor class the rate would go down to 25 per cent. Another issue of great importance is the final decision about the arrears of rent, recovery of which has been stayed. The present conclusion of the Ministry is that all these arrears should be written off, but that the writing off should be connected up with future payments of rent, a certain portion being written off for every complete payment of the half-yearly rental demand, the process extending over two or three years. I think this is a reasonable solution which will certainly act as a strong inducement to tenants to pay rents in the future. The Ministers are most anxious to establish a rent-paying mentality among the tenants. The programme contemplated for legislation is that a Bill should be introduced about the middle of April and then referred to a select committee. The committee would be given at least two months, and possibly more, to report, and public opinion will have plenty of time to declare itself. The Bill will then be taken up in July, or possibly as late as August. The Ministers realise fully the importance of the matters they are dealing with and the necessity of considering and weighing carefully the

arguments of the opposition. If they continue in this spirit, I hope that it may be possible to pass a Bill which will prove more or less acceptable to the landlords, and at any rate that it will not be rejected in the Upper House.

8. The Ministry are still considering the appointment of a new rural development officer. They realise the advantages of appointing an official, and I think are coming round to the view that this offers them the best chance of getting practical results from the money they propose to spend. There is difficulty, however, about finding a suitable official. We are undoubtedly short of good officers at present. If an official is appointed at the head of the rural development movement, I hope that it may progress on really sound lines. At present the whole scheme is very much in the air and no practical work is being done.

9. I have had to take up recently with the Premier two matters in which his attitude tends not to be satisfactory. One is the question of praise of the Garhwali mutineers² which has been referred to me by the Eastern Command. This is a matter in which I have always found the Premier decidedly difficult to deal with and extremely lacking in appreciation of obvious military considerations. I think the fact is that he himself some years ago took rather a prominent part in these activities, but I hope I shall be able to get him to see reason. The other question is that of the administration of the Arms Act. A circular to all district officers of a somewhat ambiguous character enjoining the freer grant of licences to agriculturists for crop protection was issued last month, and through inadvertence³ was not shown to me before issue. I am taking up with the Premier the question of what his precise intentions are, and whether it is necessary to refer to the Government of India, which would clearly be the case if any substantial departure from existing policy was intended. When I first raised the matter with him, he was inclined to take the line that if he could not administer the Arms Act on principles that seemed suitable to him he would not take any responsibility for it at all and would leave the Government of India to appoint their own officers. I do not think he had appreciated that the Government of India could, as I think they could under Section 124 (2) of the Government of India Act, appoint District Magistrates to carry out their policy. But of course this would be a very unfortunate development. I hope I may be able to get him to take a reasonable attitude, but I think it is well to warn you that he may prove difficult on this matter.

Yours sincerely,
H.G. HAIG

ENCLOSURE I TO NO. 33

LEADING ARTICLE FROM THE *LEADER* NEWSPAPER OF
ALLAHABAD, DATED MARCH 24TH, 1938

Our Shame

No patriotic, no self-respecting Hindu or Muslim can contemplate the orgies of the five or six days of communal riots at Allahabad and Benares except with a sense of deep humiliation and great shame. Once again have Hindu and Muslim mobs demonstrated with violence their utter unworthiness to be regarded as members of a civilized community. What for, after all, did they go at each other with a frenzy akin to that of wild beasts more than of humankind? If a Hindu marriage procession accompanied by music, passed through a thoroughfare, how on earth was the Islamic religion insulted? And where in the whole of Hindu religion is it prescribed that crowds should march on the streets to drench innocent and unwilling passers-by in dirty coloured water? We shall never forgive ourselves if we wrote in the language of levity of the doctrines or the faith of a single religious system in the world. Toleration, defined by a great man as reverence for every possible form of truth, is to our mind the very essence of a devout religious faith. But it is not religion, it is a disgraceful travesty of it for adherents of one creed to treat with contumely and afterwards to butcher their fellow-men of another faith. The whole thing is so silly and ridiculous and, if it were not so tragic, would be so eminently fit a subject for ribald laughter - this mob madness to fly at one another's throats on the slightest pretext or on none at all. All talk of our culture and our civilization and our lofty mission in the world is sheer moonshine by the side of such savage happenings as have disgraced the two sacred cities of Kashi and Prayag last week. On some former occasions of communal riots there was at least a plausible reason for dissatisfaction by one community or the other at the orders of authority as being partizan and as showing insufficient regard for the civic rights of the aggrieved community. But last week the most inventive of human minds could not think of any such excuse. To be candid, it was sheer criminal lunacy on the part of both Hindus and Muslims and no one who had any hand in initiating or prolonging the riots deserves any quarter whatsoever from any person of whatever religious faith.

The only redeeming feature of the disgraceful happenings was the effort of authority to control the grave disturbances of public peace. We are

Governor's Sanction

At this stage the Speaker said that he had received the Governor's reply to the question referred to him. The reply was:

"The question whether the previous sanction of the Governor to the introduction of the United Provinces Tenancy Bill is required under the terms of the Government of India Act appears to be one of some doubt. In the circumstances I consider it prudent that I should proceed on the assumption that previous sanction is necessary and I hereby accord sanction to the introduction of the Bill."

The House then granted leave for the introduction of the United Provinces Tenancy Bill and the Minister of Revenue introduced it. The House then adjourned till Thursday.

[*The following Enclosures are omitted: Enclosure 4: Copy of Rule 24 (3) of the U.P. Legislative Assembly; Enclosure 5: Copy of letter dated April 20th, 1938 from Secretary to U.P. Legislative Assembly to Secretary to U.P. Governor; Enclosure 6: Copy of letter dated April 20th, 1938 from Secretary to U.P. Governor to Secretary to U.P. Legislative Assembly (giving Haig's sanction as cited above).*]

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HAIG TO LINLITHGOW
R/3/1/73

Confidential
No. U.P.-71

April 23rd, 1938

My dear Lord Linlithgow,

I am writing in answer to Your Excellency's secret and personal letter, dated March 26th, 1938, regarding the adequacy of the superior staff of the administration to deal with existing conditions of work and conditions that might conceivably arise.¹⁸ As a preliminary general point, I would mention that it has been the traditional system of administration in India to work with an absolute minimum superior staff. The reason doubtless is that the superior staff is, as compared with other countries, very well paid, and in order to restrict the consequent financial burden to reasonable

proportions, the numbers have been very rigidly limited. This is a point which cannot fail to strike anyone who has seen something of the system of administration in England, and I feel sure Your Excellency will agree that our staffs, and more especially in the Provinces, are conspicuously small compared with the standards that prevail in the important Government offices in England.

2. I will take paragraph 3 of Your Excellency's letter, and give my detailed answers under the headings there suggested.

(a) and (b) - (1) The introduction of Provincial Autonomy, but more especially the existence of the Congress Ministry, has imposed an immensely increased strain on the Headquarter Secretariat. A larger Legislature and a more active public life, which are essential concomitants of the new Constitution, would in any case have meant a very considerable addition to the work of the Secretariat. But the serious strain has come from the existence of the Congress Ministry, and from the date of its taking charge. The reasons are clear enough.

(2) The Ministry came in on a wave of popular enthusiasm and announcing that they were the servants of the people and were there for the purpose of redressing every kind of grievance or injustice. The result was an enormous flood of applications from all over the Province on every conceivable petty and personal matter, and in the earlier stages at any rate the Ministers in their inexperience insisted on treating these applications with great attention. This involved a very large increase in the routine work of the Secretariat. I am told, for instance, that in the Revenue Department, over a period of six months, there has been an increase of 50 per cent. in the number of references. I do not however wish it to be understood that the whole of this increase can be attributed to mere routine and unimportant applications. Every kind of question has been ventilated.

(3) The most important cause of the increased burden on the Secretariat has been the policy of the Ministry in undertaking far-reaching changes in almost all Departments of Government simultaneously, or making enquiries with a view to such changes. In all cases the Ministry has been acting moreover under a sense of extreme urgency. Their followers have been impatient for immediate results, and they have endeavoured to secure such results often with little regard to what is physically possible. They have in consequence been driving the Secretariat machine at an excessive speed. Among the major problems that have been taken up during the past eight months are the examination of fundamental portions of the structure of Government, such as the rent and revenue system, the local self-government system, the excise system, the system of honorary magistrates and assistant

collectors, jail administration, police organisation, the amalgamation of the engineering services, and so on. Besides this, they have been examining the vital and complicated problems connected with rural development, and questions of debt legislation, trade disputes legislation, the whole education system, measures against corruption, and irrigation rates. They have also had to deal with a elaborate system of regulation of sugar factories, and the examination of large numbers of suggestions put forward in order to secure economy. All these matters have required intensive work at high pressure in the Secretariat, and work largely of an original and not of a routine character. Innumerable committees, official, mixed, select committees of the Legislature, have been set up. Nearly all have involved the attendance of a Secretary, Deputy Secretary or Special Officer, and the recommendations and proceedings of all of them must be considered in detail in the Secretariat. While the Legislature is sitting Secretaries have often been attending one and sometimes two committees from 7-30 a.m., and possibly others in the evening and on Sundays.

(4) Since the middle of July, when the present Government assumed office, up to the 31st March, the Legislative Assembly sat on 66 days and the Legislative Council on 33 days. The existence of a Second Chamber, even though of only 60 members, has increased Secretariat work considerably, since a number of questions are asked in the Legislative Council and non-official resolutions are discussed. The new Legislative Assembly of 228 is much larger than the old Legislative Council of 123. The number of questions asked is very large, and most Secretaries complain of the great strain on their time caused by the questions during the session of the Legislative Assembly. The system recently introduced, by which the answers to all questions are translated both into Urdu and Hindi, also means an appreciable increase in work for the Secretariat establishment.

(5) As Secretary to the Cabinet a considerable additional burden has fallen on the Chief Secretary, who is responsible for the circulation of the agenda and notes on matters for discussion, as well as for the minutes of proceedings. Cabinet meetings have often been held at short notice, and in such cases the chief burden of seeing that cases are ready falls on the Chief Secretary. The attitude of the Ministry towards the Services has, partly owing to inexperience, been very much more suspicious than in the past, and it has fallen to the Chief Secretary to explain and defend the actions of officials. Ministers have been receiving numerous complaints against officials, many of them without foundation or in which the facts have been entirely distorted. The Chief Secretary has had a most difficult

task in presenting the case for the administrative machinery and in dissuading Ministers from courses which would impair its efficiency.

(6) The Finance Department has had to prepare three budgets instead of one during the last financial year: a budget for 1937-8 for the Minority Ministry, another budget involving drastic changes for the present Ministry, and the ordinary budget for the year 1938-9.

(7) With this immense increase in the volume and speed of the work, the abolition of the move to the hills has undoubtedly told heavily on the Secretariat and its effect has perhaps been cumulative. The strain of intensive and unremitting office work in the hot weather is probably greater than that of the more active and varied work of the District Officer, which is also normally conducted under conditions of less pressure.

(8) When the present Ministry came into office, we had six Civilian Secretaries and two Irrigation Secretaries (Chief Engineers). The Secretariat work has been taken away from the Chief Engineers and a seventh Civilian Secretary has been added. This new Secretary has been able to take over the work of the Buildings and Roads Branch also, which was previously dealt with by the Revenue Secretary. But on the whole his appointment has given little relief to the ordinary Secretariat organisation. There are at present seven Deputy Secretaries, and a certain number of officers have been temporarily working on special duty. But these appointments have not gone far enough to meet the additional strain on the Secretaries. We probably need one or two extra Secretaries; but apart from the question of expense, it is not going to be easy to find them without weakening other parts of the administrative machine.

(9) I should add in mitigation of this very gloomy picture that I think there is reason to suppose that the volume of work now is likely to diminish rather than increase. Important progress has been made with many of the big questions in which the Ministry have been interesting themselves, and it does not look as if there are many more big questions which they can take up. The flood of miscellaneous applications has undoubtedly diminished. Even so, the burden on the Secretariat has undoubtedly increased permanently, and before long it will be necessary to consider some permanent increase in the staff.

(10) With regard to the work of the District Officers it is not easy to form a definite opinion. When the present Ministry came into office, District Officers suffered, like the Secretariat, from the immense flood of applications arising from the new conditions. They were also greatly plagued by every kind of Congress busybody, and they were faced by

innumerable administrative difficulties, great and small, arising from the new conditions and new policies.

In all these matters I think there has been a great improvement in the last three or four months, and the District Officers are much less worried than they used to be by perplexing and irritating problems. But even now one or two troublesome Congress leaders in a District, particularly if they are M.L.As., can cause a great deal of trouble to the District Officer by sponsoring and instigating unfounded complaints and bringing them to the notice of the Ministry. On the other hand, one of the hopeful features in the situation is that a great number of the more moderate Congressmen show signs of settling down into public-spirited and useful citizens who are not an embarrassment to District Officers, but on the contrary are helpful. During the last few months the communal situation has put an appreciable strain on District Officers throughout the Province, and in some places a very severe strain. Relations between landlords and tenants also in some areas give cause for anxiety and increase the work of District Officers. But on the whole the main strain was, I think, caused by the activities of Congressmen in the first two or three months after the Congress Ministry came in, and that I believe to have diminished now considerably.

(c) I am not sure that the burden can be said to have shown itself more markedly in the case of officers of a particular standing. It is a question rather of the posts than of the seniority of the officers. Actually most of our Secretaries have recently been officers of round about 20 years' service. There is no doubt that a great burden has been placed on the better European officers, who have not only been filling some of the most important Secretariat posts, but nearly all the most important District charges.

(d) I have paid a great deal of attention to the filling of key positions. Recently we have lost, either permanently or temporarily, no less than five of the six Secretaries who were functioning when the new Constitution came in, and it has been a matter of considerable difficulty to replace them. As I mentioned to you in a recent letter, in order to secure satisfactory Secretaries in the Revenue and Finance Departments, I have had to take away the District Magistrates of Allahabad and Agra. This illustrates the kind of difficulty I am now experiencing. I have barely enough good men to fill the key positions, particularly in the hot weather. I also have a certain amount of difficulty with the Premier over postings, but I have succeeded in getting decisions satisfactory to myself without any major disagreement.

(e) From what I have said above, it will be apparent that I have really no reserve at the present moment. Every good man in the Province is being employed in an important post, from which it would be difficult to spare

him; and if the situation were to deteriorate further, I might have to ask Your Excellency to let me have back some of the good men whom we have recently placed at the disposal of the Government of India. For instance, the Delhi administration at present has two of our men, Hume and Evans, who would be of great value to us. We have given Rampur State an excellent officer as Finance Minister. I know it is important from the point of view of the State that he should remain, but if circumstances necessitated it, I might have to ask for his return.¹⁰ Among the junior officers I may mention that when as a result of the Allahabad riots we wanted to send a European Joint Magistrate to Allahabad to take the place of one who had been granted leave, it proved absolutely impossible to find one. This will perhaps bring into relief our very serious shortage of European officers in the junior ranks - a point which I have stressed in connection with the recruitment to the Political Department and the taking by them of two of our European officers in the last two years.

(f) I would mention the possibilities under three heads:

(1) The normal working of the Constitution under present conditions. As I have already explained, I have no reserve available except by asking the Government of India to return valuable officers who have been lent to them. I hope that we may be able to carry on without any such necessity; but while our posts are adequately filled at the moment, we have no margin of good men. Men of the type required cannot be improvised at short notice from anywhere. If for any reason we were to lose some more of our good men, I see no course except to ask the Government of India to let us have some of our valuable officers back again.

(2) Section 93 situation. This would no doubt result in an increase of work under the head of Law and Order; but many of the causes given above for increase of work, particularly those connected with the Legislature and the complete overhaul of policies would cease to exist. I am disposed to think therefore that the personnel sufficient to man the Province effectively under present conditions would also be sufficient to deal with a Section 93 situation. Moreover, in a temporary emergency of this kind we could, if absolutely necessary, reduce our settlement operations and thereby release a certain number of valuable officers.

(3) An emergency caused by the outbreak of war would certainly make heavy demands on the personnel. The numerous activities connected with a war, combined possibly with very difficult political conditions, might make it essential to have assistance. On the other hand, it might be easier to obtain that assistance, as the less important activities connected with war conditions could be carried out by men of less specialised ability than

those required for our ordinary administration. At the same time one of the great difficulties would be that whereas ordinarily for men of this type one might look to the Army, this source would obviously be closed. We might perhaps in an emergency of this kind be able to secure the return of a certain number of retired officers. Special measures of permanent recruitment would of course take effect slowly, and I would not recommend that anything should be done which would upset the balance of the cadre and give rise to many difficulties in the future. But I do think that steps should be taken at once to recalculate our cadre so as to provide for the large demands which the Government of India make on it. Our cadre provides only for ten superior posts under the Government of India. Actually we have 27 officers serving under the Government of India. This is a very serious depletion of our resources. I also attach the greatest importance to the maintenance of the full proportion of European officers which, under the Secretary of State's orders on the Lee Commission Report,²⁰ we are entitled to have. I may mention that it was accepted that for the United Provinces the proportion of European officers should be well over 50 per cent. I have not at the moment the exact figure, but my recollection is that the proportion of European to Indian officers, was to be 45 to 35. In this connection I would like to stress once more one expedient by which I consider the Government of India could give us some really valuable and immediate assistance, and that is that the present system of recruitment for the Political Department should be discontinued. It constitutes a continual drain on the very limited number of European officers in the Province, and under present conditions I regard it as definitely dangerous to continue this drain. It comes to this, that we are not retaining the proportion of European officers which it was decided was necessary for the proper administration of the Province. To show how that proportion is being upset by the demands of the Government of India, I would mention that out of 27 officers of this Province serving under the Government of India, which includes those who have gone to the Political Department, 21 are Europeans and only 6 Indians. We have at present 11 men in the Political Department alone, none of whom are Indians.

(g) I have already in my remarks on the Secretariat referred to the increased strain imposed on Secretariat officers by the discontinuance of the move to the hills. In addition to the Secretariat, a large number of officers have in the past been entitled to recess in Naini Tal for various periods ranging from one month to three months. This includes Members of the Board of Revenue, all Heads of Departments, Commissioners, Superintending Engineers, Deputy Inspectors-General of Police and so

on. If this privilege had been withdrawn, it would have reacted very seriously on the contentment of the Services. I am glad to say that as a result of a Cabinet meeting held a few days ago the Ministry have agreed to allow recessing officers to continue to go to Naini Tal for the periods previously sanctioned. But they have insisted that any clerks or peons they take up must be taken at their own expense and not that of Government. In view of the fact that Government have cancelled the hill move for themselves and the Secretariat on the ground of the expenditure, it would have been impossible for them to agree to incur expense on behalf of Heads of Departments, etc., going to Naini Tal for their own convenience. But I do not think the new rule will be felt as a serious grievance, or will impose any unreasonable financial burden on the officers. On the whole I was considerably reassured by the general tone of my Ministers in discussing this matter. It was clear that they had no desire to pin-prick officers or to deprive them unreasonably of old-established privileges. Nevertheless, in minor matters there are doubtless constant little rubs, and I do not underestimate their cumulative importance. All I can say is that at the moment the main body of superior officers seems to be content to go on with their work, recognising that it is full of interest, though at the same time full of difficulties, and hoping that gradually conditions, at present irksome, will improve. If those anticipations are not fulfilled, I fear that after a year or two we may be faced with a considerable drain from officers retiring earlier than they would have normally or taking proportionate pensions.²¹

Yours sincerely,
HARRY HAIG

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HAIG TO LINLITHGOW
R/3/1/73

Secret

No. U.P.-72

April 23rd, 1938

My dear Lord Linlithgow,

I mentioned in my last fortnightly report, dated April 8th, that though the communal trouble had subsided, acute feeling still persisted in Allahabad and considerable nervousness, and one could not be sure that there might

Minister to give his own directions as to the class of cases which should be seen by Parliamentary Secretaries, the following cases should be marked by Secretaries "to H.M. through P.S.", viz., files dealing with answers to questions in the Legislature, or resolutions or bills, official and non-official. This emphasises the point that the primary duties of the Parliamentary Secretary are parliamentary and that in all business which concerns the Legislature, the files should, as a matter of settled practice, be seen by the Parliamentary Secretary.

6. I suggest that these rules should be tried experimentally for some months. Whether they prove convenient or the reverse will depend in the main in the spirit in which they are worked. If they are worked in a spirit of good-will and with full acceptance of the necessary limitations, I hope that the new system will be of assistance to the Hon'ble Ministers and prove more satisfactory to the Parliamentary Secretaries, and, at the same time, that the authority and position of the official Secretaries will be in no way impaired.

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HAIG TO LINLITHGOW

R/3/1/73

Secret

No. U.P.-78

Camp,
May 13th, 1938

My dear Lord Linlithgow,

I am glad to say that there have been, since I last wrote, no further serious manifestations of Hindu-Muslim ill-will. The underlying situation, however, remains unchanged and general opinion does not seem to anticipate any settlement arising from the Gandhi-Jinnah conversations.³⁹ Failing a settlement I think we must be prepared for communal outbreaks to continue whenever there is any exciting cause, such as the occurrence of festivals, &c.

2. I mentioned at the end of my last letter that the Chehlum had led to rioting in Lucknow between Sunnis and Shias. This caused a good deal of anxiety for some days, but the Police handled the situation very vigorously and peace was restored before long. The rioting, however, must I fear have left a legacy of increased bitterness between the two sects, and the Government have under consideration in consequence a temporary addition

to the Lucknow Police Force, though owing to political apprehensions they are not prepared to make the Muslim inhabitants pay for it. The Sunnis seem now to have started some form of civil disobedience similar to that which was practised for a considerable time in 1936 and led to the appointment of the Allsop Committee.⁴⁰ I imagine that apart from the genuine feeling between the two sects, there are certain elements among the Sunnis which are not sorry to have an opportunity of embarrassing the Government by trying to maintain disturbed conditions in Lucknow. On the other hand a real attempt is being made by some of the more responsible leaders to reach a settlement.

3. The Premier was very well impressed by the active measures taken by the Police in Lucknow to bring the disturbances under control, and I think this personal experience has made him more appreciative of the work done by the Police elsewhere. At any rate, after having in spite of suggestions made to him, delayed many weeks to express any appreciation of what the Police did in Allahabad and Benares, he has recently sent to the Inspector-General an admirable letter expressing his satisfaction and appreciation of the Police work in Lucknow, Allahabad and Benares.

4. At a time when this appreciation of Police work seemed to be rather markedly lacking, I made a point of visiting Cawnpore on April 26th to open a very fine Kotwali that has just been built. I enclose a copy of the speech I made.⁴¹ In the case of Cawnpore I was particularly anxious to give the Police some encouragement; for they had done well under most difficult conditions, and the Ministers were inclined to ignore all their good work on account of indignation at the violent attack which had been made on Hafiz Muhammad Ibrahim, the Minister, early in February when he was proceeding in procession through the heart of Cawnpore. Briefly what happened was that the local Hindu Congressmen, who are an exceedingly mischievous and unreliable lot, wished to organise a demonstration in favour of Muhammad Ibrahim. They know perfectly well that this would be greatly resented by the Muslim League, seeing that Muhammad Ibrahim had deserted the League for the Congress. Nevertheless they insisted on organising this provocative demonstration. It was unfortunate that just at this time both the District Magistrate⁴² and the Superintendent of Police⁴³ were away on casual leave for a few days attending the Civil Service Week in Lucknow. The officers on the spot got information about this procession and the probable reactions to it rather late and did not convey any warning to the Minister against coming to Cawnpore. When, however, he arrived in the morning, they told him at the station that there was likely to be trouble, and they advised him not to

proceed with the arrangements. He felt, however, that things had gone too far and that he would be disgraced if he cancelled the arrangements at the last moment. Consequently, the procession took place and though a considerable body of Police were present along the route, at two points Muslims attacked the procession with brickbats, and at the second point, when the procession was broken up, the Minister himself was in some danger. The Police cleared up the situation very rapidly, but the Ministry as a whole felt that they had been insulted by this attack on one of their members and were persuaded that the Muslim Kotwal had shown indifference in the arrangements for the protection of the procession. The matter fell into the background as the constitutional crisis almost immediately supervened and I had hoped that it would not be pressed further, particularly as the Commissioner⁴⁴ who held an inquiry sent in a report which on the whole justified and exonerated the local officers. However, the Ministers insisted on discussing the report of the Commissioner at a Cabinet meeting held at the end of April just before I left Lucknow, and after prolonged debate decided to record a general expression of dissatisfaction with the arrangements made in Cawnpore in this connection, and also called upon the Kotwal to give his explanation on a charge of either being unacquainted with the conditions or, if he realised the conditions, taking inadequate steps to deal with them. I think it is probable that the Kotwal will be able to give a reasonable explanation, but it is clear that the Ministry are very anxious to transfer him. I have warned them that the transfer of the Kotwal at the present time is a step that may involve some danger to the peace of Cawnpore, and I hope that the matter may at any rate be postponed for some time until the labour situation has declared itself.

5. With regard to the labour situation, I have little to add to what I said in my last letter. The employers have been engaged, I understand, in drafting an elaborate rejoinder to the Inquiry Committee's report. The Ministry decided to take the report into consideration on the 10th of May, but I have not yet heard whether the employers' representation has been received. I had some talk recently with the Premier about the probable course of events. He had always maintained that labour would regard the recommendations of the report as the minimum, and I put it to him that as it was evident that the employers would reject some of the most important recommendations, a situation of considerable danger was likely to arise, and I asked him what line of action he contemplated taking. He said that if the employers could establish the fact that certain of the recommendations of the Committee were unreasonable, that was certainly a factor that the

Government would have to take into account, and he evidently contemplated the possibility of being able to get labour to accept something less than the recommendations of the report, if a convincing case against them was made out. He thus still hopes that the Government will in effect be able to mediate between the two parties and bring them to an agreed settlement. This is, I think, the only chance of avoiding trouble, and I am glad that the Premier seems to be taking a reasonable attitude in the matter. I feel that one of the dangers is that, economically, labour is in a position of hopeless weakness. If a strike were to take place, I fancy the employers are confident that it could not last more than about two months, and indeed the workmen have no financial resources behind them. This may tempt the employers to take up an unduly stiff attitude. On the other hand, if they did, public opinion would be against them, and I think public opinion will count for a good deal. On the whole, it seems to me not impossible that there may be some settlement, though it will obviously take time.

6. There have been no further developments in the investigation into the Pipridih train dacoity, and I understand that there is nothing at present to suggest that this gang had any extensive connections, or was part of any of the well-known revolutionary organizations. In connection with this question of revolutionaries, you may be interested to know that recently I had a communication from one of the ex-Kakori prisoners forwarding for my favourable consideration a copy of a letter he had addressed to the Premier, in which he explained that he was entirely without financial resources and that therefore he should either be provided with a Government post or be given a substantial loan to enable him to set himself up in business, in return for which he was prepared to abstain from all further undesirable activities while the loan was outstanding. He proceeded to state the proposition that it was necessary for a man to live, particularly if he were a revolutionary. I fancy, in fact, that one of the main difficulties with men of this type is that they have no means of livelihood, and that extremist agitation does offer them some prospect of being able to collect a little money. I imagine this is a problem which must be facing the Bengal Government on a much more extensive scale.

7. Contrary to expectations, the debate in the Assembly on the motion to refer the Tenancy Bill to a Select Committee petered out in less than a day. Though there seems to have been some understanding as a result of which the debate was cut short, the general impression left on the public was that the landlords' opposition had been much weaker than had been anticipated. Just before I left Lucknow, the taluqdars sent me a memorial claiming that the proposals in the Tenancy Bill were in conflict with their

sanads and asking for my protection. I gave the Raja of Jehangirabad an interview in connection with this memorial and asked him, in the first place, what action he wished me to take about it. He explained that he wished me to treat it as a memorial specially addressed to myself personally and did not wish me to make it over to Sir Maurice Hallett for disposal, and that he hoped I would take the memorial to England and show it to the Secretary of State and have some discussion with the India Office about it. I explained to him that I had little belief in the validity of their legal arguments, expounded to him what my constitutional position was in regard to legislation of this kind, and advised the taluqdars to concentrate on political opposition to such of the proposals as they felt were most seriously contrary to their interests and to ensure that their case was put before the public in a convincing way. I found him very reasonable, though naturally somewhat depressed about the future, and I hope in fact the landlords will devote their energies to trying to secure modifications on certain important points, rather than rely on outside authorities to save them. I may mention that the Premier gave me recently in conversation his anticipation of the future course of business in connection with these tenancy and revenue measures. In addition to the Tenancy Bill, there remain still to be drafted a revenue bill and a bill dealing with the arrears of rent that were suspended last autumn. The Select Committee on the Tenancy Bill is not expected to start work until about the middle or end of June. It is expected that its report will be ready for submission to the Legislature about the end of July or the beginning of August. In the meantime, the bills dealing with revenue and the stayed arrears of rent will be available before the end of June. They also will be taken up by the Legislature early in August. On this programme it certainly seems that when I return from leave in the middle of September the legislation will still be under discussion, and this is in fact the anticipation of the Premier.

8. I referred in my last letter to the question of appointment of the Rural Development Officer. Since then the I.F.S. officer whom I mentioned has been appointed, and I hope he will do reasonably well. The question of the scope and organization of the Rural Development Movement is now under active consideration, and I am hopeful that practical schemes of work will be evolved. I hope, too, before long that the question of the recruitment of the staff will be settled on a satisfactory basis and that the principle of utilizing the Public Service Commission for recruiting to the more important posts will have been firmly established. There has been a good deal of controversy recently in connection with the functions and authority of the Public Service Commission. It is a somewhat prolonged tussle, for there are elements within the Government, particularly Dr. Kaiju,

which are most reluctant to submit to the restriction of the Ministry's powers over appointments. I think however my position is being steadily consolidated and that this struggle will end satisfactorily. The Public Service Commission themselves, under the guidance of Sir Digby Drake-Brockman, their Chairman, are very properly insistent on their position and rights.

9. I am afraid this letter has run to considerable length, and I will only refer briefly to a few other topics. I have addressed Your Excellency separately and in detail on the question of the functions of Parliamentary Secretaries and the proposal for separation of executive and judicial functions in the districts. The report of the Anti-corruption Committee set up by the Government is about to be published. One of the proposals of the Committee on which they lay great stress, and which appears to me to be fundamentally unsound, is that a Committee should be set up in each district which would include all the local members of the Legislature to advise the District Officer in dealing with corruption. When this matter was discussed in the Cabinet, I told the Ministers plainly that in my opinion if they wanted to secure real results, they should make their wishes known unmistakably to the officials and require their full and determined co-operation. I said I was convinced that if this were done, the co-operation required would be forthcoming in full measure. But if officials felt, as they do at present, that the anti-corruption campaign is being used largely for the purpose of satisfying personal or political enmities, then it could not be expected that they would take up the matter with any enthusiasm or conviction. I told them that if non-officials were to play any appreciable part in this campaign I felt that the results were bound to be disappointing, and a great deal of ill-feeling would be created. Somewhat to my surprise I found that several of the Ministers appeared to be impressed by what I said, though the Premier is still inclined to cling to the ideas on which he has been proceeding for several months past.

10. The selections of Honorary Magistrate under the new system are being made now. I have not received any definite information as to the nature of the results. Your Excellency will no doubt have noticed in the papers two strong judgments (copies enclosed)⁴⁵ passed by the Allahabad High Court convicting Congress workers of contempt of court in respect of representations they had addressed to certain subordinate courts in the districts. These judgments will have an excellent effect and will, I hope, put a stop to a practice which had probably become not uncommon. One of the persons convicted, Dr. Bishwanath Mukerji, M.L.A., is one of the most troublesome Congressmen in the very troublesome district of Gorakhpur, and this reminder of the limitation the law places on his actions

ENCLOSURE TO NO. 66

ARTICLE FROM THE CONGRESS SOCIALIST, BOMBAY,
SEPTEMBER 3RD, 1938

**Problems of a Congress Minister by Sampurnanand,
Minister for Education, United Provinces**

The first problem of a Congress Minister has to face is himself – his psychological make-up. The man who has gone through the hectic days of 1921, the dark days and years following the suspension of non-co-operation, the Civil Disobedience struggles of 1930-2, with experiences of underground work on a scale till then thought impossible, has got these experiences woven into the very fibre of his being.

We do not talk of Swaraj in a purely intellectual sense. We have seen, where we have not experienced, suffering – the mental and physical torture of our comrades through the years. We have been rebels.

Now we have to adjust ourselves to new surroundings. We have to work within the four walls of the Government of India Act, against which we revolt with every fibre of our being. It is not easy.

We feel like kicking over the traces. Believe me, not one of the Ministers I know does not, immersed in his files, pine for the old days. We live in an atmosphere of unreality. There are many of us who would like to get out of it. But there we are.

The machine. – Our next problem are our subordinates – the instruments through which we must function. They have, as a whole, adjusted themselves to the new environment admirably. In the vast majority of cases we have no complaint against them. The lower grade of Indian official, more than the Englishman, finds it difficult, however, to reconcile himself to democracy. He looks upon it as unreal – a passing phase, a bad dream.

There is, as a result, a silent, mental non-co-operation on their part. It constitutes a serious brake on our work. It is a splendid machine – meant to be fool-proof. But it was not, and is not, a machine devised for Independence, for revolutionary times and changes. Red tape certainly is one of our problems.

To my knowledge, there is no historical parallel to the circumstances in which we accepted office. A people struggling for national Independence, meaning to continue to fight for it, stop half-way to accept administrative responsibility! This is a contradiction in our position which also creates difficulties.

Constructive work, properly so called, can be thought of in terms of decades, if not generations. But here – we may have to leave our places at any moment. So we have to devise yearly and six-monthly programmes and projects. And this with a bureaucratic machine which is static, not dynamic.

In the United Provinces we have five Universities of which three are under the Government of India. This year we decided to give 2 of them some help. Pandit Govind Ballabh Pant, the Premier and Finance Minister, and I decided the matter in conversation in exactly two minutes. But we have not been able to give effect to our decision for three or four months! Red tape will have its way.

Had there been a complete capture of power, it would all have been very different.

Hopes deferred. – Another problem is that created by the hopes and expectations roused in the minds of our masses. One has only to see and meet people to realise the difference. There is visible hope, confidence that was not there a year ago. It is *their* Government. In the United Provinces when the man in the street talks of the *sir-car* he thinks of the Congress Committees.

Hence the great amount of work done by these Committees. Complaints of tenants against zamindars, of the public against officials, of wives against husbands have all to be dealt with.

And every day, sheafs of such complaints are forwarded by Congress Committees to us. We suffer from an *embarras de richesse* in the way of advice. If you don't take any notice of them, people get angry. You can't afford that – these are democratic times.

The amount of psychological energy available today needs to be seen to be believed. The problem is how to harness it, how to satisfy the expectations roused.

It all shows what could be done under a real national government if only all the brains and energy could be harnessed.

The Link. – An allied problem is the Congress worker. He has been our colleague in the fight. Today, he is *par excellence* the man on whose information we can rely. He is also the exponent of our policy. He has to bear the pressure from both sides.

The Congress Working Committee has in its infinite wisdom thought fit to decide that we Ministers may not serve on Congress Executives. This has to an extent cut us off. We can only feel the pulse of the organisation through the Congress worker.

He feels we are where we are because of him and he cannot understand why we do not always abide by his advice. He thinks he has a lien on your time.

Your Congress worker has formed a certain picture of what a Congress Minister should be like. Sometimes, we fail to live up to his picture. Then he discovers we have feet of clay.

A Thorn. — The problem created by communal leaders is, for us in the United Provinces at least, a thorny one. There is unprecedented and cold-blooded misrepresentation by the Muslim League of all we do. Much good work has in consequence to be stopped.

The United Provinces Cabinet had made up its mind to restore the fullest civil liberty. It has tried to stick to that resolve but I confess we have had to go back on it a little. The Province has become a happy hunting-ground for people from neighbouring Provinces.

The Muslim League knows that in the United Provinces there can never be a Muslim League Government which will have to face problems. So today they are amongst the most radical of politicians! No measure of reform is good enough for them. But when in private we ask whether they will support a radical measure, some of them frankly say they will absent themselves from the Assembly on that occasion!

There are others also who have abused the civil liberty extended, but the most guilty are the communal leaders.

Everything we do is, according to them, with the one aim of destroying Muslim culture and establishing a Hindu raj in the Province!

We may not put down even the preparations for communal riots because immediately there would be the cry of "Repression".

There are other problems — that, for instance, of finance. With a grant of Rs. 2,000, I am expected to solve the problem of unemployment! What I am doing with it is to provide employment to two clerks and two peons.

All this may help others to assess things correctly when preparing balance-sheets for Congress Ministers. But they should also remember that on them no less than on us lies the responsibility for the experiment.

NOTES

1. Not included in R/3/1/73.
2. Mr L.P. Hancox acted as District Magistrate, Cawnpore between 13 May and 16 September 1938 while Mr L. Owen was on leave.
3. In his letter of 7 May 1938 to Governors, Lord Linlithgow expressed the view that there had been a substantial modification in the attitude of Congress

to Federation at any rate on the part of the right wing. Instead of outright rejection, there had been a move in the direction of acceptance subject to bargaining. Linlithgow asked Governors for a confidential appreciation of the atmosphere and position on Federation in their provinces.

4. In a lengthy answer to a question in the Indian Legislative Assembly on 10 March 1938, Sir James Grigg stated that the early achievement of Federation represented the considered policy of both the British Government and the Government of India. See *The Legislative Assembly Debates*, 1938, Vol. 2, p. 1666.
5. This is a reference to a speech made by Lord Zetland at the annual Bombay Dinner in London on 27 May 1938. Zetland said there was not the least likelihood of the British Government or Parliament being willing to consider, before even Federation had come into operation, any alteration in its structure.
6. Mr Mubashir Husain Kidwai.
7. Mr Srikrishna Sinha was the Premier of Bihar at this date.
8. Sir Sikander Hyat Khan and Mr A.K. Fazl-ul Haq were the Premiers, respectively, of the Punjab and Bengal at this date.
9. Lord Linlithgow minuted: 'P.S.V. — Whether one agrees or not, Hallett makes some interesting points. My own view is that he fails to give Gandhi his full value, and fails to realise that — unless Congress can get an arrangement with the Muslim League favourable to Congress — it is very probable that Congress will take Federation with a few inexpensive trimmings within the Act; the Service pl[oin]t is of importance. S/S. must know Hallett's views.'
10. Mr R.M. Saner.
11. See No. 33, note 2.
12. Lieutenant-Colonel A.E. Clarke.
13. Not printed.
14. Lord Linlithgow minuted: 'P.S.V. — It would be foolish to promote a 1st rate row over this incident. I think Hallett should make a strong *personal* appeal to Pant to point out to the Parliamentary Secty. that speeches of that kind are better left unspoken. Report fully to S/S.'
- Correspondence on the Lansdowne incident continued through the summer of 1938. Eventually the G.O.C.-in-C., Eastern Command agreed to terminate the expulsion order on Mr Rup Chand Varma and recommended a refund of the fine imposed on him. On 20 September 1938 the U.P. Government expressed its gratitude for this action. R/3/1/74.
15. The text of the U.P. Government's Resolution on the Cawnpore Labour Inquiry Report is printed in Basudev Chatterji (Ed.), *Towards Freedom: Documents on the Movement for Independence in India*, 1938. Part II (New Delhi: Oxford University Press, 1999), pp. 1692-1701.
16. In paragraph 2 of his letter of 3 June 1938, Lord Linlithgow said he felt the best prospect of a solution of the dispute lay in Pandit Pant getting the two parties together round a table and giving out a fairly definite hint of pressure. R/3/1/73.

evidently looks with some apprehension on the Congress meeting in February. It is possible that her views may have been coloured at this moment by the visit of Subhas Chandra Bose, who obviously has been anything but helpful to the more moderate Ministers; but I have no doubt that, broadly speaking, she is right and that we must expect the left wing to become more and more aggressive and, I fear, powerful. You will understand that this will make Pant's position very difficult.

3. I should be grateful if Your Excellency would treat this information as strictly personal. I am sending a copy of this letter to the Secretary of State.

Yours sincerely,
H.G. HAIG

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HAIG TO LINLITHGOW
R/3/1/74

Secret

No. U.P.-205

My dear Lord Linlithgow,

I send herewith for your information a copy of a note recorded on the 21st November by my Premier regarding the formation of District Advisory Committees, which has just reached me. With regard to the merits, or rather demerits, of this particular proposal, and the line that should be taken with reference to it, I will address Your Excellency when I have been able to consider it carefully and in detail, and when I have received the note which the Chief Secretary is preparing on the subject. But I feel sure you would like to be aware at once of this proposal.

2. I am myself considerably impressed by a growing feeling that an attack on a broad front is being made on the whole machinery of the present administration, and I think we ought to frame our policy with reference to that view. I mentioned in a recent letter the probability, already fore-shadowed by my Premier, of an attack on European recruitment for the services. An attack on their pay may be developed at any moment, and I have with me now the proposals of my Ministers for the abolition of all posts of Commissioners, a matter on which I shall in due course address Your Excellency officially. Now comes this proposal for the constitution of District Advisory Committees. We have already under consideration a

scheme for the separation of judicial and executive functions, which will soon be coming up for final consideration. I think it is necessary that all these matters should be viewed in relation to their cumulative effect in shaking and weakening the administrative structure. Side by side with this we have the activities, which I recently mentioned to Your Excellency, for the formation of an extensive Congress Army (as they themselves call it) of volunteers.³⁰

Yours sincerely,
H.G. HAIG

ENCLOSURE TO NO. 80

MINUTE BY GWYNNE

December 2nd, 1938

Hon'ble Ministers:

The attached note on the subject of the formation of District Advisory Committees, which has been prepared by the Hon'ble Premier, is circulated to Hon'ble Ministers under Hon'ble Premier's orders. I am preparing a further note on the subject and will circulate it to Hon'ble Ministers as soon as it is ready.

C. W. GWYNNE
Chief Secretary

ATTACHMENT

NOTE BY PANT

November 21st, 1938

The question of the establishment of District Councils to assist District Officers in the administration of the district has been engaging my attention for a considerable period. We have appointed a number of committees in districts from time to time to deal with specific questions. Some of these are, I believe, still in existence. The Anti-corruption Committee presided over by Sir Maharaj Singh have recommended that committees composed of officials and non-officials should be formed in every district to deal with matters pertaining to corruption. Their recommendation is embodied in paragraph 22 on page 8 of their papers. I am of opinion that a permanent committee should be formed to assist the District Officers in all those

matters for which independent permanent committees have been considered necessary as well as for other purposes which I will indicate later. It will no longer be necessary to appoint any *ad hoc* committees for temporary purposes once such a Council has been established.

The subject is not new. It was raised before the Decentralization Commission in 1908. One of the main objects of the inquiry of the Commission was to devise means for bringing the district administration into closer touch with the people. This course was supported by leading independent public men of the day in our Province. Of the 84 non-official witnesses who gave evidence before the Commission 71 were in favour of this proposal. It was also approved by the non-official Europeans who were examined by the Commission. However, nothing came out of this inquiry, although in our Province the leading public men including Madan Mohan Malaviya, Sir Sundar Lal, Raja Sir Rampal Singh, Nawab Sir Muhammad Muzammil Ullah Khan and the Revd. Greaves were among its supporters.

In 1912 Mr. Gokhale moved a resolution in the Governor-General's Legislative Council to the effect "that steps should now be taken to bring the district administration into closer touch with the people by creating, as far as possible, in every district in the provinces a District Council composed of not more than nine members, partly elected and partly nominated whose functions should be merely advisory to begin with, and whom the Collector should ordinarily be bound to consult in all important matters." As usual Mr. Gokhale made a very elaborate and reasoned speech in support of his motion. In the course of his speech he urged that a body so formed, sitting round a table with the Collector and meeting once a month, would be able to dispose of a lot of business on the spot, which at present involves endless delays and indirectly to get rid of a lot of poison which now gathers in a district from day to day and which tends to vitiate the air in a manner truly regrettable. He also replied to the criticism that such committees should tend to impair efficiency of administration [?by arguing that] the association of a Council with the District Officer would greatly increase it. District administration, he said, is the real ground of contact between the bulk of the people and the Government and that no expansion of the legislatures, unless supplemented by the creation of advisory councils, would fully meet the requirements. In 1922, Pt. Gokaran Nath Misra moved a similar resolution in the United Provinces Council recommending to the Government to appoint advisory committees in all the districts consisting of non-officials including the members of the Council to advise the Collector on important matters relating to the

administration of the district. The Government accepted the scheme in principle and undertook to try it in a few selected districts. Nothing was, however, done and the question continued to agitate the public mind. In November 1936 the United Provinces Legislative Council adopted another resolution asking Government to establish such Councils in districts. Soon after our assuming office a resolution, of which notice had been given by Professor Krishna Chandra, was tabled in August 1937, recommending to Government that advisory committees should be formed in each district to advise and help the District Magistrate in the discharge of his functions. The resolution was, however, not reached. There is little doubt that if it had been discussed it would have received support from all sections of the House and Government would have accepted it.

Far-reaching constitutional changes have taken place since the Decentralization Commission examined this question. We have now the system of Provincial Autonomy and ministerial responsibility covers the entire field of administration. The bureaucratic system has been replaced in the provinces by popular and democratic Government. It would be a legitimate question whether the need for such Councils subsists even after the introduction of the system of responsible Government. I personally feel it has become still greater. The field and the structure of administration must be regarded as one integral and whole unit. A change merely at the top unaccompanied by any readjustment at the base is bound to be incomplete, unsuitable and unsatisfactory, even from the purely administrative point of view. The various parts of the machine should work in unison, so that there may be no clogging of the wheels, no deadlocks and no jerks. The maximum efficiency cannot be ensured unless there is a stable equilibrium. The system of democratic Government ultimately rests on the sanction of the people and it cannot effectively function except with their willing co-operation. Such co-operation cannot yield fruitful results if it is confined to the top. It may even become a source of embarrassment and weakness to the administration as a whole if a friendly attitude towards the Government is not accompanied by mutual active trust at the bottom. With the stirrings of new life, new forces with a different outlook must also come into existence and as the people become more and more conscious of their [?new position] vigilance should increase and along with it the criticism of public acts of public servants should become more and more vocal and widespread and so will be the demand for the removal of grievances. The public attitude will be determined to a very large extent by the trust enjoyed by the administration in any particular locality. To some extent it must also depend on their knowledge of the

limitations and handicaps under which Government have as a rule to function. Even to maintain peace and control crime public co-operation is absolutely essential. The Police do not receive adequate support at the hands of the public. The executive agency of the Government is looked upon with suspicion in some places and there is a lack of the appreciation of the difficulties of the officials and of the *bona fides* of the public workers. Besides, with the change in the system of Government the function of the district authorities is no longer merely formal or concerned with the maintenance of public peace and the prevention and control of crime, but it must be formative and constructive as well. There is a natural anxiety to raise the economic, moral and material level of the community with the result that nation-building activities claim constant attention and the District Officer has to see not only that the people in his district live peacefully and are not maltreated and robbed but he must also devise measures calculated to make them happy and prosperous. His task is stupendous. Several of our districts are [as] big, if not bigger, than some of the foreign and Indian States. In the exigencies of public service District Officers are frequently transferred and specially in the hot weather junior officers have to be placed in charge of districts, sometimes with little knowledge of the locality and little experience of the conditions in which they have to work. I consider it essential in the interest of the administration that the District Magistrate should be assisted by a Council which should be more or less a miniature of the Government at the top. The contact between the Government and the members of the legislature and especially those belonging to the party in power may give cause for misgivings if there are no legitimate avenues of approach and association between the District Officers and the members of the legislature. Similarly, the confidence of the people may be shaken, howsoever well-meaning and capable a Government be, if there is constant friction between the leaders and the officers in the districts. It is necessary to ensure a smooth working of the machine in order to avoid waste and to achieve the best return for the public money.

When this proposal was discussed in the past it was suggested that the members should be partly elected and partly nominated. To this certain objections were raised. It was argued that such a procedure would call for the preparation of an electoral roll, the prescription of an electoral procedure with the processes of nomination, scrutiny, election and all the attendant inconvenience and expense. I appreciate the force of these objections and I am opposed to fresh elections also on other grounds, as I do not want a body in the districts that would not be in harmony with the

legislature which is ultimately responsible and which for the time being mirrors public opinion. I also agree that the committee should be fairly small, and that its function should be advisory and not binding on the District Magistrate. A great deal can be achieved by mutual consultation. I believe that the appointment of such committees will have a very wholesome effect. Misapprehensions will be allayed, if not removed altogether, and the District Officers will receive intelligent support and ready co-operation to a much larger degree than at present. The responsibility for the administration will as heretofore rest on the shoulders of the District Magistrate, but his burdens will be lightened. I believe that a great deal of distrust is due to lack of knowledge and when opportunities for a frank talk are available the mist will disappear. I also know that the members of the legislature, especially belonging to the party on whom the responsibility of administration is cast for the time being, are bound to act in a responsible manner. I am not without hope that in many cases an agreement will be reached and even where it is not, the tension will be relieved by mutual discussion. The proceedings of the committee should be confidential. The statutory and general responsibilities of the District Magistrate will not be diminished in any way by the coming into existence of these committees. Matters need not necessarily be decided by votes, but the District Magistrate will take account of the sense of the committee and it will be to his advantage if he has some means of measuring the public barometer.

The committees may consist of the District Magistrate, the Superintendent of Police, the local M.L.As. and M.L.Cs., the President of the District Bar Association and two or three men nominated by Government. The same member of the legislature will not be on the committee of more than one district. When he represents a constituency which extends to more than one district he will make his choice of the particular district committee on which he would like to serve. The committees will be given power to co-opt members for special purposes. I mention some of the matters on which the committee will advise the District Magistrate:

- I - Selection of honorary magistrates.
- II - Temperance and prohibition movement.
- III - Measures for furthering the rights and amenities of scheduled castes.
- IV - Anti-corruption measures to be dealt with in the manner recommended by the Maharaj Singh Committee.
- V - False reports, unjustifiable attacks and interference with public servants.

- VI - Extension of the operation of Acts to new areas.
- VII - Legislative proposals.
- VIII - Matters pertaining to religious endowments.
- IX - Organization of relief measures on the occasion of famine, floods, fires, earthquakes, cholera and other natural calamities and epidemics.
- X - Social measures, such as the control of gambling, traffic in women and prevention of child marriages.
- XI - Local publicity to remove misunderstandings and to contradict false or malicious propaganda.
- XII - Reclamation of criminal tribes.
- XIII - Need for the imposition of punitive police and the enrolment of special police officers.
- XIV - Recommendations about remissions and suspensions of land revenue.
- XV - Cancellation and restoration of the exclusion from the Arms Act of such arms as swords, spears, &c.
- XVI - Special measures required for the maintenance of public peace and tranquillity, and for the control of crime.
- XVII - Agrarian and labour troubles.
- XVIII - Regulation and control of fairs, festivals and religious processions.
- XIX - Constructive planning.

The list above is not exhaustive. Still I am not particularly keen that all these items should be taken up by these committees forthwith. The first 12 seem to me to be completely harmless and unobjectionable. We may make a start with these and then extend the scope later. All district committees need not necessarily exercise identical functions. There will be nothing to prevent the District Magistrate from referring to the committee any other matter not covered by the categories indicated above. The members of the committee may refer any question of general interest to the District Magistrate and if he considers it advisable he may include it in his agenda. Meetings of the committee may be held whenever necessary, ordinarily once a month. The committee will not have anything to do with matters pertaining to the appointment, preferment, &c. of public servants or with the grievances of any particular single individual. I feel that the District Magistrate will find the committees a source of strength and that his co-operation with them will make for better, more efficient and more popular administration in districts. With goodwill on both sides, with a sense of responsibility and a desire to promote the welfare of the public the occasions for any disagreement should be very rare.

Chief Secretary will please prepare a note for the Council of Ministers on this subject and in the meantime circulate this.

G.B. PANT

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HAIG TO LINLITHGOW
R/3/1/74

Secret

No. U.P.-206

December 6th, 1938

My dear Lord Linlithgow,

I enclose the official fortnightly report. It does not contain much of special interest. The passage dealing with the Cawnpore labour trouble was amended by the Premier so as to make it more colourless. I shall later in this letter deal with the Cawnpore situation at some length. As I remarked in my last fortnightly report of November 22nd, the Province is at present quiet, but it is very necessary to consider with attention possible developments.

2. In my last report I brought the Tenancy Bill situation up to the point that the Taluqdars were reluctantly prepared to accept arbitration by the Parliamentary Sub-Committee, but that it was doubtful whether the latter would agree. After a short time it became apparent that the Parliamentary Sub-Committee were not prepared to intervene. The Taluqdars held a meeting while this point was still unsettled, but decided, quite rightly in my opinion, not to divide themselves and make a public declaration of the willingness of the majority to accept arbitration while it was still not certain whether the Parliamentary Sub-Committee would agree. This particular solution may now, I think, be regarded as dead.

3. Soon afterwards my own apprehensions about the course of the discussions on the Tenancy Bill were greatly relieved by conversations I had with the Revenue Minister, Kidwai, and with the Premier. Kidwai is generally regarded as something of a left winger and is believed to have been hostile to any concessions to the landlords. When talking to him I made the point that if the Bill was seriously amended in the direction of satisfying the left wing, it would make it so much the less likely that it would get through the Upper House. He surprised me by saying that it was not in fact the intention of the Ministry to allow the Bill to be substantially amended in the left wing direction, that they contemplated

ENCLOSURE 2 TO NO. 81

CUTTING FROM THE NATIONAL HERALD,
DATED NOVEMBER 27TH, 1938

Cawnpore,
November 26th, 1938

Mr. Bal Kishen [Krishna] Sharma, President of the City Congress Committee of Cawnpore, has issued the following statement to the Press with regard to the Governor's visit and the proposed Bekar Sabha's demonstration in Cawnpore:

"I learn that the Bekar Sabha of Cawnpore is organising a demonstration of factory workers of the city. It so happens that the day of the demonstration coincides with the day of the Governor's arrival. So far as I know, the demonstration is neither directed against the Government nor against the Governor. The demonstrations do not mean any personal affront to the Governor. It is only with a view to drawing the attention of the Cawnpore public as also of the Local Government to the acute problem of unemployment in Cawnpore, that the demonstration in question has been staged. The unemployed workers wish to evoke the sympathy of the Cawnpore public to the plight they are subjected to.

"I, therefore, hope that the demonstrators will do nothing by way of shouting slogans or by demonstrating in front of any particular spot which may be interpreted to involve any expression of protest against the Governor's personality."

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H.A.G. TO LINLITHGOW

R/3/1/74

Secret

No. U.P.-208

My dear Lord Linlithgow,

Paragraphs 2 and 3 of Your Excellency's secret letter, dated 5th December 1938,⁴⁴ deal with considerations which have been very much in my own mind ever since I returned from leave, and I am glad that you have brought them out specifically. I have thought that the best way of dealing with them is to put down my ideas in the form of a memorandum, which I

enclose. I am sending a copy of this letter and the memorandum to the Secretary of State.

Yours sincerely,
H.G. HAIG

ENCLOSURE TO NO. 82

MEMORANDUM BY HAIG

Secret

December 19th, 1938

Appreciation of existing position

Since I returned from leave in September, I have been receiving information from various sources that the left-wing in this Province is gathering strength, that its activities are now a definite embarrassment to what is in the main a right-wing Government, and that the Government is increasingly disposed to give in to left-wing pressure. I think it is fair to say that this is the common impression in the Province. From my own dealings with the Ministry in the last few months I draw a similar conclusion. It seems to me that there are indications that the Premier is finding it difficult to stand up to left-wing pressure.

(a) His attitude about communism and particularly the activities of the communists in Cawnpore is unsatisfactory, and indicates an unwillingness or fear to take action against a comparatively small body of men, who do not belong to the Congress and are doing a good deal of mischief.

(b) His attitude towards the movement for the formation of militant Congress volunteers is equally unsatisfactory, though I recognise that it would in any case be very difficult for him to oppose a movement which has secured the support of the Congress organisation.

(c) I am receiving from the Ministry a series of proposals which would have the effect of weakening the administration seriously.

(i) They have formally proposed the abolition of the posts of all Commissioners.

(ii) They are formally considering the appointment of advisory committees for district officers, ostensibly with powers limited to advice, but with the clear intention that the advice should be followed. There is an obvious intention that the members of the Congress Party in the districts should obtain a controlling influence over the district administration.

(iii) Far-reaching proposals for the reorganisation of local bodies are

contained in the report of a committee which has been sitting for many months past presided over by one of the Parliamentary Secretaries. The most important proposals of this committee are for the establishment of village Panchayats to cover every village in the Province. It is proposed to give the village Panchayats very extensive and unsuitable powers, including apparently control over chauthdars and the enlistment of "civic guards". It is proposed also to establish Judicial Panchayats with dangerously wide powers. The Ministry have not yet considered their attitude to these proposals, but the fact that they have been made under the auspices of a Parliamentary Secretary is of some importance.

(d) There are also various items of general policy which suggest the same conclusion, in particular the attitude about rents. Though the Premier has given both myself and the landlords to understand that he does not contemplate any reduction of rents below the rate to which they were reduced in the remissions given on account of the 1931 slump, and has recently reiterated this intention to me, there seems to be no doubt that some months ago he made a promise to the Party that he would reduce rents by 6½ crores, and if possible 7 crores, below the pre-slump level. This would involve a reduction of rents by some 3½ crores from the present level and would involve grave complications of various kinds. The Premier seems at present uncertain what to do about this problem. It is likely to be a crucial test of how far he will submit to left-wing pressure. In some respects however the Ministry show signs of pursuing a reasonable course. It is perhaps the case that at certain points they give way to pressure, and when there is no special pressure they maintain their own line.

2. There is a good deal of talk of growing dissatisfaction among the propertied classes and moderate men of all kinds at the disturbed conditions, the increase in crime, the loss of respect for authority, which have to some appreciable extent been the results of nearly 18 months of Congress administration. The policy of the Congress Ministry has given rise to:

- (a) a fairly general sense of uneasiness among moderate persons;
- (b) some loss of business by shopkeepers;
- (c) industrial unrest and consequent loss to capitalists as well as workers;
- (d) agrarian unrest and threatened loss of income and certain rights by landlords.

It has not escaped notice that while the Government are vigorous in their attack on corruption in the Services, Congress workers are to an increasing extent following those courses which are denounced in the case

of the Services, and that the Congress authorities seem singularly reluctant to check these malpractices among their own supporters.

3. In spite of all that is being done or attempted for the villagers they are only doubtfully grateful. They have been led by the general election campaign and the constant Congress agitation in the villages since then to expect much, and are getting into a habit of thinking that Government must do for them everything they desire. They seem to be paying more attention to what has not been done than to what has been done. As an illustration of this feeling, I observed in a rural development village which I visited recently, where some substantial improvement seems to have been effected and the village looked reasonably prosperous, that the villagers concentrated on lamenting their poverty, and presented a long series of complaints with a view to reduction of rent, increase of irrigation and so on, none of which appeared to have much substance. This spirit is encouraged by the left-wing agitators who are always leading the villagers to expect far more than any Government can give them.

4. The Muslims are strongly opposed to the Government and the Muslim League movement shows signs of great vitality. It has captured practically the whole body of Muslims in the Province and is working under aggressive leadership.⁴⁵ Communal relations are naturally bad throughout the Province, and the antagonism between Muslims and Hindus and the consequent fear of disturbances is one of the main anxieties of the Ministry.

5. As against this discontent, which is either sectional, as in the case of the Muslims, the landlords and the industrialists, or vague, as in the case of men of moderate views, we have to place the immense prestige that Congress have won in the Province since the general election, and particularly since they took office, the authority they possess and exploit fully by virtue of being the Government, the nationalist sentiment which extends probably to a much larger proportion of the population than one might suppose, and is greatly reinforced by Hindu feeling and ideas of Hindu raj, the great personal popularity of Pandit Govind Ballabh Pant whose name is known throughout the Province. These are very important assets and far outweigh the factors of discontent mentioned previously. There is in my opinion at the present time no sign at all of the possibility of any Government being formed in this Province other than a Congress Government.

6. The administrative machinery is still intact. Tendencies towards the formation of a parallel administration which were observable in the first few months after the Ministry took office have gradually died down. They were not in my view part of an official policy, but were a spontaneous

expression of the ideas of Congressmen in the first flush of enthusiasm when they came into power. But there are now signs, as I mentioned in paragraph 1, of a deliberate policy of weakening the administrative machinery by changes in the organisation. Though the machinery is still intact, the authority of the administrative services is not what it was. There is a general feeling that if a Government officer does anything displeasing to members of the public, it is always possible to appeal either direct or through the intervention of some local Congress authority to the Premier with a hope that some result will come of it. This feeling again is possibly less strong than it was; but while we are settling down now to conditions of equilibrium, it is a somewhat different equilibrium to that which existed before the Congress Ministry came into office and it means a certain loss of authority.

7. The Courts maintain their authority, aided by vigorous action taken by the High Court to deal with numerous cases of Congressmen trying to interfere with the course of justice. The Ministers themselves have not shown any great scruple in their attitude to cases in which they had any political interest, but I think this tendency can be, and is being, kept within bounds, and is much less marked than it was.

8. The police have probably suffered more than any other part of the machine in loss of authority for the reasons generally explained in paragraph 6, which affect the police in particular; and they have also lost confidence to some extent owing to the anti-corruption activities launched by the Ministry, and a feeling that those who had antagonised the Congress in the old days were likely to be victimised. I think this process has probably been arrested, and I am even hoping that there may be some improvement, for the Premier has certainly shown a realisation of the fact that he must have an efficient police force if order is to be kept in the Province. The discipline of the police is in my opinion still intact and they could be relied upon to act vigorously, if given a lead.

9. Apart from administrative difficulties, the services, and particularly perhaps the provincial and subordinate services, are generally somewhat resentful of their treatment by the Congress Government. Privileges and allowances are cut down wherever they can be, and there is recognition of the fact that the Ministry would like to go much further on this path. There is some inevitable apprehension that they are not safe against attacks on fundamental things, like their pay. There is a feeling that members of the services are not really trusted, that political considerations and personalities have too much sway, that transfers in the case of the non-protected services are made too lightly on personal grounds of favour or the reverse. Some

of course identify themselves with the Congress, but on the whole the members of the very important provincial executive service, for instance, have maintained a spirit of independence and indeed an attitude of criticism towards the Government beyond what could have been expected. The reason is partly that they do not like the new system which has affected their authority and made things in many ways more difficult for them, and partly, without doubt, the fact that a great many of them are connected with landlord families and have landlord sympathies.

10. This is generally the situation as it appears to me at present. When I went on leave in May, I thought that we were on the up-grade. We had overcome many initial difficulties, the Ministers seemed to be showing an increasing sense of responsibility and were getting more and more occupied with practical administrative considerations. I hoped that we were gradually settling down, and undoubtedly we should have, if the right-wing could have had their own way. When I returned from leave, the left-wing seemed to me definitely stronger than it had been, and I now have a feeling that the process of improvement has been arrested, and that we may begin to slip down. There is nothing really to show for this as yet administratively. It is rather a question of the minds of the Ministers and their general policy. It is possible that I am attaching too much importance to certain tendencies, but what I have said certainly represents the view that generally prevails. There is always the possibility that the Working Committee may bring pressure to bear on the Ministry from the other side. So far they do not seem to have done much in this direction; but if left-wing influence became too pronounced in the United Provinces it is not impossible that the Working Committee might come into action. That is indeed, I think, the best hope for the future.⁴⁶

POSSIBLE DEVELOPMENTS IF LEFT-WING GATHERS STRENGTH

11. If, however, we are to assume that the left-wing will continue to gather strength, I should not anticipate an open breach between the right- and left-wings. I think the Working Committee would undoubtedly assert itself to stop this. Ruling out therefore an open breach, there would remain two possible developments:

- (a) Pant would remain in office with perhaps some left-wing accession to his Ministry.
- (b) Pant would be displaced without any open breach and a Ministry, left-wing or predominantly so, would be gradually installed.

Of these two alternatives I consider (a) more probable. Pant would be likely to cling to office and to subordinate his views to the extent necessary to the left-wing. In spite of the heavy burden of work, I believe he enjoys the power and position immensely, and I think he would make every effort not to surrender it. The choice between the two alternatives would hardly lie with me, but I consider that (a) would be decidedly the easier position to deal with, for Pant's own natural moderation would act as some kind of brake, though not a very reliable one, on policy.⁴⁷

12. The effects that might be anticipated from a growing left-wing policy are:

(a) Increasing agrarian difficulties, tenants getting out of hand, landlords in self-defence organising themselves better and forced to fight for their existence. Conditions of disorder would gradually develop.

(b) Growth of revolutionary and communist feeling, directed both against the general political and social order and against the British connection and the British people. It is impossible to tell at what point this feeling, which would be steadily worked up, might become really formidable.

13. We have got to realise that with a situation of this kind at some point conditions of disorder would arise that could not be tolerated. A crucial question is, whether we should wait for this stage or anticipate it. On the whole my view is that we should wait as long as is at all possible without running the risk of complete collapse.

(a) There is really no going back on the constitutional experiment. Even if it breaks down for a time, it will have to be renewed before long. Therefore unless we are to have the same administration back again and go over the same ground once more, we must allow a left-wing administration to discredit itself as much as possible and prove unmistakably its dangers and disadvantages.⁴⁸ This would afford the only chance of a more moderate administration being formed after a break-down.

(b) If we took action too soon, sympathy would be aroused for the popular Government. At the time of the ministerial crisis in February last it was very noticeable how most even of those who were strongly opposed to the policy of the Congress Ministry did not want it to fall altogether and the system to break-down.

14. It is perhaps probable that if the Ministry felt the situation getting out of hand, they would themselves force some issue and resign. We should have to be careful at that stage to avoid being put in the wrong on a weak case.

GENERAL POLICY

15. From the above I would draw the following conclusions about policy:

(a) We must retain intact the framework of the administration. There should be no hesitation in rejecting proposals, such as the abolition of Commissioners, &c. which are going to weaken this seriously.

(b) We must retain the confidence of the services and keep them in reasonably good heart. For this purpose we must not agree to anything that injures them fundamentally, such as reduction of pay, or makes them feel that they cannot depend on the reasonable support of the Governor. These are the two key positions which we must defend. Without them, we cannot retrieve the situation if a break comes; with them, we should be able to.

(c) We must on the other hand, if the Government comes under the domination of left-wing influences, put up with policies which are dangerous to the peace of the Province, until the point of breaking clearly arises. It would be necessary continually to point out the dangers, to draw the attention of Ministers constantly to the effect of what they are doing or leaving undone; but we should not in my opinion, force (or risk) a break down on a disputable apprehension of disorder. This means of course taking certain risks, but I think we should take those risks with our eyes open and relying on (a) and (b). If, however, the confidence of the services were being seriously affected by development under (c), then this would be a good cause for acting without further delay.

16. If things are allowed to come to a point at which the dangers become clearly apparent to the public, there is always the possibility that public opinion may assert itself and bring about a more moderate policy. Constitutionally it seems right to pursue this line and trust to the normal balances of a democratic constitution as far as possible. Further, in the special conditions of India and the nationalist complications of the situation, I feel that this is from the practical point of view the wise course.⁴⁹ I should like to emphasise the point that I am in this memorandum assuming a deterioration in the situation, which may in fact never occur. I do not wish it to be understood that I am at present expecting these developments, but we have to consider possible eventualities. Further, I recognise that what I have suggested above can only indicate a general outlook on these problems and cannot be taken as a settled guide to conduct in particular circumstances; but it is desirable to be clear about our general outlook, and particularly about the points on which we must stand firm.

H.G. HAIG

(d) British Policy, 1937-47

1

GOVERNOR GENERAL'S STATEMENT ON INDIA AND THE WAR,¹ 8 AUGUST 1940

INDIA'S anxiety at this moment of critical importance in the world struggle against tyranny and aggression to contribute to the full to the common cause and to the triumph of our common ideals is manifest. She has already made a mighty contribution. She is anxious to make a greater contribution still. His Majesty's Government are deeply concerned that that unity of national purpose in India which would enable her to do so should be achieved at as early a moment as possible. They feel that some further statement of their intentions may help to promote that unity. In that hope they have authorised me to make the present statement.

Last October His Majesty's Government again made it clear that Dominion Status was their objective for India. They added that they were ready to authorise the expansion of the Governor-General's Council to include a certain number of representatives of the political parties, and they proposed the establishment of a consultative committee. In order to facilitate harmonious co-operation, it was obvious that some measure of agreement in the Provinces between the major parties was a desirable prerequisite to their joint collaboration at the Centre. Such agreement was, unfortunately, not reached, and in the circumstances no progress was then possible.

During the earlier part of this year I continued my efforts to bring the political parties together. . . .

It is clear that earlier differences which had prevented the achievement of national unity remain unbridged. Deeply as His Majesty's Government regret this, they do not feel that they should any longer, because of those differences, postpone the expansion of the Governor-General's Council, and the establishment of a body which will more closely associate Indian public opinion with the conduct of the war by the Central Government. They have authorised me accordingly to invite a certain number of representative Indians to join my Executive Council. They have authorised me further to establish a War Advisory Council which would meet at regular intervals and which would contain representatives of the Indian States and of other interests in the national life of India as a whole.

The conversations which have taken place, and the resolutions of the bodies which I have just mentioned, made it clear, however, that there is still in certain quarters doubt as to the intentions of His Majesty's Government for the constitutional future of India, and that there is doubt, too, as to whether the position of minorities, whether political or religious, is sufficiently safeguarded in relation to any future constitutional change by assurances already given. There are two

¹ *Parl. Papers, X, India and the War (1939-40)*, Cmd. 6219.

main points that have now desire me to make

The first is as to the scheme. It has already not exclude examination plans on which it is should be given to the out. That remains the

It goes without saying responsibilities for the whose authority is the national life. Nor commitment to such a Government

The second point British Commonwealth comes. There has been should be primarily from Indian conception life. His Majesty's Government given the fullest practical which Great Britain which His Majesty's is clear that a momentence is not one in which solved. But His Majesty readily assent to the sensible delay of a body life in order to devise every aid in their power degree . . .

The conclusions of Sir Stafford Cripps have the question as to whether of these discussions will

His Majesty's Government country and in India future of India, have they propose shall be

¹ Lord

WAR,¹ 8 AUGUST

world struggle against non cause and to the made a mighty contri- His Majesty's Govern- in India which would s possible. They feel s promote that unity. In ment.

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INDEPENDENCE AND PARTITION

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main points that have emerged. On those two points His Majesty's Government now desire me to make their position clear.

The first is as to the position of minorities in relation to any future constitutional scheme. It has already been made clear that my declaration of last October does not exclude examination of any part either of the Act of 1935 or of the policy and plans on which it is based. His Majesty's Government's concern that full weight should be given to the views of minorities in any revision has also been brought out. That remains the position of His Majesty's Government.

It goes without saying that they could not contemplate transfer of their present responsibilities for the peace and welfare of India to any system of government whose authority is directly denied by large and powerful elements in India's national life. Nor could they be parties to the coercion of such elements into submission to such a Government.

The second point of general interest is the machinery for building within the British Commonwealth of Nations the new constitutional scheme when the time comes. There has been very strong insistence that the framing of that scheme should be primarily the responsibility of Indians themselves, and should originate from Indian conceptions of the social, economic and political structure of Indian life. His Majesty's Government are in sympathy with that desire and wish to see it given the fullest practical expression, subject to the due fulfilment of the obligations which Great Britain's long connection with India has imposed on her and for which His Majesty's Government cannot divest themselves of responsibility. It is clear that a moment when the Commonwealth is engaged in a struggle for existence is not one in which fundamental constitutional issues can be decisively resolved. But His Majesty's Government authorise me to declare that they will most readily assent to the setting up after the conclusion of the war with the least possible delay of a body representative of the principal elements in India's national life in order to devise the framework of the new Constitution, and they will lend every aid in their power to hasten decisions on all relevant matters to the utmost degree . . .

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THE CRIPPS MISSION,¹ 30 MARCH 1942

The conclusions of the British War Cabinet as set out below are those which Sir Stafford Cripps has taken with him for discussion with the Indian Leaders and the question as to whether they will be implemented will depend upon the outcome of these discussions which are now taking place.

His Majesty's Government, having considered the anxieties expressed in this country and in India as to the fulfilment of the promises made in regard to the future of India, have decided to lay down in precise and clear terms the steps which they propose shall be taken for the earliest possible realisation of self-government

¹ *Lord Privy Seal's Mission*, Cmd. 6350 (1942) pp. 4-5.

tion of their fearful trial and for the grant of the required strength to bear the suffering whose very contemplation makes one shudder. Their cause is just and their victory certain. For God is always the upholder of justice."

Sevagram, 8-9-'39

Harizan, 16-9-1939

WORKING COMMITTEE'S MANIFESTO

1. The Working Committee have given their earnest consideration to the grave crisis that has developed owing to the declaration of war in Europe. The principles which should guide the nation in the event of war have been repeatedly laid down by the Congress, and only a month ago this Committee reiterated them and expressed their displeasure at the flouting of Indian opinion by the British Government in India. As a first step to dissociate themselves from this policy of the British Government, the Committee called upon the Congress members of the Central Legislative Assembly to refrain from attending the next session. Since then the British Government have declared India as a belligerent country, promulgated ordinances, passed the Government of India Act Amending Bill, and taken other far-reaching measures which affect the Indian people vitally, and circumscribe and limit the powers and the activities of the Provincial Governments. This has been done without the consent of the Indian people whose declared wishes in such matters have been deliberately ignored by the British Government. The Working Committee must take the gravest view of these developments.

2. The Congress has repeatedly declared its entire disapproval of the ideology and practice of Fascism and Nazism and their glorification of war and violence and the suppression of the human spirit. It has condemned the aggression in which they have repeatedly indulged and their sweeping away well established principles and recognized standards of civilized behaviour. It has been in Fascism and Nazism the intensification of the principle of imperialism against which the Indian people have

struggled for many years. The Working Committee must therefore unhesitatingly condemn the latest aggression of the Nazi Government in Germany against Poland and sympathize with those who resist it.

3. The Congress has further laid down that the issue of war and peace for India must be decided by the Indian people, and no outside authority can impose this decision upon them, nor can the Indian people permit their resources to be exploited for imperialist ends. Any imposed decision, or attempt to use Indian resources for purposes not approved by them, will necessarily have to be opposed by them. If co-operation is desired in a worthy cause, this cannot be obtained by compulsion and imposition, and the Committee cannot agree to the carrying out by the Indian people of orders issued by external authority. Co-operation must be between equals by mutual consent for a cause which both consider to be worthy. The people of India have, in the recent past, faced great risks and willingly made great sacrifices to secure their own freedom and establish a free democratic State in India, and their sympathy is entirely on the side of democracy and freedom. But India cannot associate herself in a war said to be for democratic freedom when that very freedom is denied to her, and such limited freedom as she possesses taken away from her.

4. The Committee are aware that the governments of Great Britain and France have declared that they are fighting for democracy and freedom and to put an end to aggression. But the history of the recent past is full of examples showing the constant divergence between the spoken word, the ideals proclaimed, and the real motives and objectives. During the War of 1914-18 the declared war aims were the preservation of democracy, self-determination, and the freedom of small nations, and yet the very governments which solemnly proclaimed these aims entered into secret treaties embodying imperialist designs for the carving up of the Ottoman Empire. While stating that they did not want any acquisition of territory, the victorious Powers added largely to their colonial domains. The present European war itself signifies the abject failure of the Treaty of Versailles and of its makers, who broke their pledged word and imposed an imperialist peace on the defeated nations. The one hopeful outcome of that treaty, the League of Nations, was muzzled and

strangled at the outset and later killed by its parent States.

5. Subsequent history has demonstrated afresh how even a seemingly fervent declaration of faith may be followed by an ignoble desertion. In Manchuria the British Government connived at aggression; in Abyssinia they acquiesced in it. In Czechoslovakia and Spain democracy was in peril and it was deliberately betrayed, and the whole system of collective security was sabotaged by the very Powers who had previously declared their firm faith in it.

6. Again it is asserted that democracy is in danger and must be defended, and with this statement the Committee are in entire agreement. The Committee believe that the peoples of the West are moved by this ideal and objective and for these they are prepared to make sacrifices. But again and again the ideals and sentiments of the people and of those who have sacrificed themselves in the struggle have been ignored and faith has not been kept with them.

7. If the war is to defend the *status quo*, imperialist possessions, colonies, vested interests and privileges, then India can have nothing to do with it. If, however, the issue is democracy and a world order based on democracy, then India is intensely interested in it. The Committee are convinced that the interests of Indian democracy do not conflict with the interests of British democracy or of world democracy. But there is an inherent and ineradicable conflict between democracy for India or elsewhere and imperialism and Fascism. If Great Britain fights for the maintenance and extension of democracy, then she must necessarily end imperialism in her own possessions, establish full democracy in India, and the Indian people must have the right of self-determination by framing their own constitution through a Constituent Assembly without external interference, and must guide their own policy. A free democratic India will gladly associate herself with other free nations for mutual defence against aggression and for economic co-operation. She will work for the establishment of a real world order based on freedom and democracy, utilizing the world's knowledge and resources for the progress and advancement of humanity.

8. The crisis that has overtaken Europe is not of Europe only but of humanity and will not pass like other crisis or wars

leaving the essential structure of the present-day world intact. It is likely to refashion the world for good or ill, politically, socially and economically. This crisis is the inevitable consequence of the social and political conflicts and contradictions which have grown alarmingly since the last Great War, and it will not be finally resolved till these conflicts and contradictions are removed and a new equilibrium established. That equilibrium can only be based on the ending of the domination and exploitation of one country by another, and on a reorganization of economic relations on a juster basis for the common good of all. India is the crux of the problem, for India has been the outstanding example of modern imperialism, and no refashioning of the world can succeed which ignores this vital problem. With her vast resources she must play an important part in any scheme of world reorganization. But she can only do so as a free nation whose energies have been released to work for this great end. Freedom today is indivisible and every attempt to retain imperialist domination in any part of the world will lead inevitably to fresh disaster.

9. The Working Committee have noted that many rulers of Indian States have offered their services and resources and expressed their desire to support the cause of democracy in Europe. If they must make their professions in favour of democracy abroad, the Committee would suggest that their first concern should be the introduction of democracy within their own States in which today undiluted autocracy reigns supreme. The British Government in India is more responsible for this autocracy than even the rulers themselves, as has been made painfully evident during the past year. This policy is the very negation of democracy and of the new world order for which Great Britain claims to be fighting in Europe.

10. As the Working Committee view past events in Europe, Africa and Asia, and more particularly past and present occurrences in India, they fail to find any attempt to advance the cause of democracy or self-determination, or any evidence that the present war declarations of the British Government are being, or are going to be, acted upon. The true measure of democracy is the ending of Imperialism and Fascism alike and the aggression that has accompanied them in the past and the present. Only on that basis can a new order be built up. In

the struggle for that new world order, the Committee are eager and desirous to help in every way. But the Committee cannot associate themselves or offer any co-operation in a war which is conducted on imperialist lines and which is meant to consolidate imperialism in India and elsewhere.

11. In view, however, of the gravity of the occasion and the fact that the pace of events during the last few days has often been swifter than the working of men's minds, the Committee desire to take no final decision at this stage, so as to allow for the full elucidation of the issues at stake, the real objectives aimed at, and the position of India in the present and in the future. But the decision cannot long be delayed, as India is being committed from day to day to a policy to which she is not a party and of which she disapproves.

12. The Working Committee therefore invite the British Government to declare in unequivocal terms what their aims are in regard to democracy and imperialism and the new order that is envisaged, in particular, how these aims are going to apply to India and to be given effect to in the present. Do they include the elimination of imperialism and the treatment of India as a free nation whose policy will be guided in accordance with the wishes of her people? A clear declaration about the future, pledging the Government to the ending of Imperialism and Fascism alike, will be welcomed by the people of all countries, but it is far more important to give immediate effect to it, to the largest possible extent, for only this will convince the people that the declaration is meant to be honoured. The real test of any declaration is its application in the present, for it is the present that will govern action today and give shape to the future.

13. War has broken out in Europe and the prospect is terrible to contemplate. But war has been taking its heavy toll of human life during the past year in Abyssinia, Spain and China. Innumerable innocent men, women and children have been bombed to death from the air in open cities; cold-blooded massacres, torture and utmost humiliation have followed each other in quick succession during these years of horror. That horror grows, and violence and the threat of violence shadow the world, and, unless checked and ended, will destroy the precious inheritance of past ages. That horror has to be checked in Europe

and China, but it will not end till its root causes of Fascism and Imperialism are removed. To that end, the Working Committee are prepared to give their co-operation. But it will be infinite tragedy if even this terrible war is carried on in the spirit of imperialism and for the purpose of retaining this structure which is itself the cause of war and human degradation.

14. The Working Committee wish to declare that the Indian people have no quarrel with the German people or the Japanese people or any other people. But they have a deep-rooted quarrel with systems which deny freedom and are based on violence and aggression. They do not look forward to a victory of one people over another or to a dictated peace, but to a victory of real democracy for all the people of all countries and a world freed from the nightmare of violence and imperialist oppression.

15. The Committee earnestly appeal to the Indian people to end all internal conflict and controversy and, in this grave hour of peril, to keep in readiness and hold together as a united nation, calm of purpose and determined to achieve the freedom of India with the larger freedom of the world.

Wardha, 14-9-1939

Gandhiji's Comment on the Manifesto

The Working Committee's statement on the world crisis took four days before it received final shape. Every member expressed his opinion freely on the draft that was, at the Committee's invitation, prepared by Pandit Jawaharlal Nehru. I was sorry to find myself alone in thinking that whatever support was to be given to the British should be given unconditionally. This could only be done on a purely non-violent basis. But the Committee had a tremendous responsibility to discharge. It could not take the purely non-violent attitude. It felt that the nation had not imbibed the non-violent spirit requisite for the possession of the strength which disdains to take advantage of the difficulty of the opponent. But in stating the reasons for its conclusion the Committee desired to show the greatest consideration for the English.

The author of the statement is an artist. Though he cannot be surpassed in his implacable opposition to imperialism in any shape or form, he is a friend of the English people. Indeed he is more English than Indian in his thoughts and make-up. He

is often more at home with Englishmen than with his own countrymen. And he is a humanitarian in the sense that he reacts to every wrong, no matter where perpetrated. Though, therefore, he is an ardent nationalist, his nationalism is enriched by his fine internationalism. Hence the statement is a manifesto addressed not only to his own countrymen, not only to the British government and the British people, but it is addressed also to the nations of the world including those that are exploited like India. He has compelled India, through the Working Committee, to think not merely of her own freedom, but of the freedom of all the exploited nations of the world.

The same time that the Committee passed the statement it appointed a Board of his choice with himself as Chairman to deal with the situation as it may develop from time to time.

I hope that the statement will receive the unanimous support of all the parties among Congress. The strongest among them will not find any lack of strength in it. And at this supreme hour in the history of the nation the Congress should believe that there will be no lack of strength in action, if action becomes necessary. It will be a pity, if Congressmen engage in petty squabbles and party strife. If anything big or worthy is to come out of the Committee's action, the undivided and unquestioned loyalty of every Congressman is absolutely necessary. I hope too that all other political parties and all communities will join the Committee's demand for a clear declaration of their policy from the British Government with such corresponding action as is possible amidst martial conditions. Recognition of India, and for that matter of all those who are under the British Crown, as free and independent nations seems to me to be the natural corollary of British professions about democracy. If the war means anything less, the co-operation of dependent nations can never be honestly voluntary, unless it were based on non-violence.

All that is required is a mental revolution on the part of British statesmen. To put it still more plainly, all that is required is honest action to implement the declaration of faith in democracy made on the eve of the war, and still being repeated from British platforms. Will Great Britain have an unwilling India dragged into the war or a willing ally co-operating with her in the prosecution of a defence of true democracy? The

Congress support will mean the greatest moral asset in favour of England and France. The Congress fights not with violent but with non-violent means, however imperfect, however crude the non-violence may be.

Sevagram, 15-9-39

Hartian, 23-9-1939

A POLISH SISTER'S AGONY

"In spite of all I am going to try to reach Poland — sailing tonight — to Basra in Iraq, then through Turkey and Rumania. The inner call is irresistible. It may seem madness from the ordinary human point of view. Now I am not going for my mother's sake or for my dearest friends who are now on the battle-fields — ready to die at any moment — it is for Poland itself. I believe countries have also souls. Souls of nations are a reality, not a theory, for me. If I reach the soil of Poland, I will feel satisfied, even if I do not find those whom I love. It is the soul (and body) of the nation itself that is in its supreme hour of martyrdom. I believe Poland bleeds and struggles not only for her own rights but for the Right, the Just, the True, for the freedom of all nations, India including. I feel Hindu to the bottom of my heart; Indian as much as Pole, both motherlands are to be in my soul to the last day of my life. But I could not live if I would not do what is humanly possible to reach the feet of the Mother who is now bleeding in agony of pain. I shall write from the way, but not when I reach the war zone; I shall only think often about you and send mental messages as well as I can. Bapuji, do pray in all fervour of your great loving heart for those thousands of innocent people who suffer incredible pain and misery in Poland. It is these that need most sympathy and blessings and tender thoughts."

This is the letter a Polish sister wrote from Bombay Harbour. I have known her for some years. She has become as much Indian as she is Polish. She had decided to work at Maganwadi in the Magan Museum. But the rumours of war upset her. She has an aged mother in Poland whom she could not bring out owing to passport difficulties. When the war actually broke out, she calmed down so far as her mother was concerned. But her highly strung nature would not let her rest

feeds the ants and insects and refrains from killing has hardly anything in it to recommend itself. It is a mechanical performance without any spiritual value. It may even be worse—a hypocritical screen for hiding the corruption within.

Sevagram, 9-9-40

Harizan, 15-9-1940

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NON-VIOLENCE DURING RIOTS

A friend writes:

"How can non-violence be efficacious during riots? By self-immolation we can influence only those with whom we have already established living contacts. But the hooligans who perpetrate violence during riots are, as a rule, hirelings imported from outside. How can they have any scruples about hurting those whom they have never known before and for whom they can have no regard or consideration?"

The question deserves careful consideration. The friend who has put it is a valiant worker who nearly lost his life in trying to do his duty during a riot. I have often written on this question before. The pity of it is that Congressmen have never seriously thought over the question of finding a non-violent way of quelling riots. Their non-violence was restricted to the sole purpose of offering civil resistance to the authorities. In my opinion the non-violence that goes so far and no further scarcely deserves the name 'ahimsa'. You may, if you like, call it unarmed resistance. So far as it is a device for embarrassing the Government it is a species of *himsa*. To quell riots non-violently, there must be true *ahimsa* in one's heart, an *ahimsa* that takes even the erring hooligan in its warm embrace. Such an attitude cannot be cultivated. It can only come as a prolonged and patient effort which must be made during peaceful times. The would-be member of a peace brigade should come into close touch and cultivate acquaintance with the so-called *gonda* element in his vicinity. He should know all and be known to all and win the hearts of all by his living and selfless service. No section should be regarded as too contemptible or mean to mix

with. Goondas do not drop from the sky, nor do they spring from the earth like evil spirits. They are the product of social disorganization and society is therefore responsible for their existence. In other words, they should be looked upon as a symptom of corruption in our body politic. To remove the disease we must first discover the underlying cause. To find the remedy will then be a comparatively easy task. So far we have not even attempted a proper beginning. But it is never too late to mend. It is enough that we are at last alive to the necessity of it. We have now to follow it up with prompt action. Let everyone who is interested make a prompt beginning in his own neighbourhood. The difficulty mentioned by my correspondent will automatically resolve itself, if we proceed with our effort in the right spirit.

Sevagram, 9-9-40

Harizan, 15-9-1940

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SPEECH AT THE A. I. C. C.

[Here is the full text of Gandhiji's English speech at the A. I. C. C. meeting in Bombay on 15th September. It is revised by Gandhiji and is thus an authorised version. M.D.]

I know that you have listened to me with the greatest patience. I am specially grateful to you today, for the simple reason that I have said many things which may have displeased you. But it was never my intention to displease those whom I want to harness for the great work that lies before you and before me. I have to speak to you at length because I have to shoulder this burden. I have not come with a prepared speech at all. The thoughts will come as I proceed.

Let me begin with a thought which has been weighing with me for a considerable time. When the war broke out and I went to Simla to see the Viceroy, I issued a statement the next day, not in a representative but in my individual capacity. A friend has now reminded me how good it would have been if I had simply hung on to that statement although I could not take the Congress with me; and on the eve of my shouldering this respon-

sibility, he prayed that I should be guided by God to take up that original position and retire. I have very great regard for him. I have not forgotten that statement, nor have I any regret or apology to offer. If such a thing occurs—and history often repeats itself—and I happen to go to another Viceroy, I should make the same statement.

Although I spoke only for myself, deep down in me there was the Congressman speaking. The Viceroy also did not send for me because I was M. K. Gandhi. M. K. Gandhi has absolutely no place in his books. The man who wields the sceptre can have no room for individuals. He sent for me because he thought I would represent the Congress view and I would be able to carry conviction to Congressmen.

I withdrew from that position, not as an individual but as a Congressman, and because I failed to carry conviction even to a single Congressman. Happily you have got on the Working Committee men with sterling honesty who had the courage to tell me that, although it was my statement, they did not feel like accepting it. They added that they had had bitter experience behind them, and that therefore they would not be able to take that position. Thus you had the resolution that was passed by the Congress immediately after the war. And I agreed with the resolution as a representative, although I said to them that, if I could carry conviction, my original position was the best possible one to take up. If I had pressed the members of the Working Committee to accept my position, they would have done so, but it would have been only mechanical. The statement was not made to deceive the Viceroy or, for the matter of that, a single soul. It came straight from the heart. It was not a theatrical display. It was the opening up of the secret recesses of the heart before the world, the Viceroy and the Congress. If these words of mine could not find an echo in their hearts, they would have been of no use whatsoever to the Viceroy, to the great English nation or to India. That still remains my sentiment. If I could not convince the Congress of my attitude, it would not carry us further. It would have been a wrong step to take, and hence it was not taken. With that background I approach this resolution.

I have made repeated statements that I would not be guilty of embarrassing the British people or the British Government when their very existence hung in the balance, that I would not

be true to my *satyagraha*, would not be true to non-violence, would not be true to the truth which I hold dear if I did so, and therefore could not do so. That very man now stands before you to shoulder the burden of *satyagraha*. Why? There comes a time when a man in his weakness mistakes vice for virtue; and virtue itself, when taken away from its context and from the purpose for which it was dedicated, becomes vice. I felt that, if I did not go to the assistance of the Congress and take the helm even if it be in fear and trembling, I would be untrue to myself.

I feel that in taking the step that we are doing we are rendering a great service not only to the Congress but to the whole of India. And we are rendering a service not only to the whole of India. History will record—and Englishmen will be able to grasp this statement some day—that we rendered help to the English nation, and they will find that we were true to our salt and had the same bravery and fearlessness of which the Englishman is proud and for which he is renowned. I, who claim to be a fast friend of the British people, will be guilty of unfriendly conduct if, under a false sense of modesty, or because people may think otherwise about me, or because Englishmen themselves will be angry with me, I do not issue a warning that the virtue of self-restraint now becomes vice, because it will kill the Congress organization, and it will kill the very spirit which is exercising this restraint.

When I say, I am speaking not only for the Congress, but for all who stand for national freedom—Muslims, Parsis, Christians and even those who are against the Congress, so long as they represent the aspiration of India, namely unadulterated independence. I should be untrue to all of them, if at this time I said, 'no embarrassment to the British'. I must not repeat parrot-like 'no embarrassment'. Then that repetition would be just as useful for my salvation or for the guarding of my virtue as the repetition by a parrot of God's name which cannot bring him salvation, because it is only a mechanical and vocal effort without any intelligence behind it. Therefore, if I exercise that suppression at this critical moment in the history of the nation, it would be useless. I should be perfectly untrue to myself if I hid myself in Sevagram and said, "No, I have told you, 'no embarrassment.'"

The language of this resolution is in the main mine. It

appealed to Pandit Jawaharlal Nehru. I used to be the Congress draftsman. Now he has taken my place. He saw it was inevitable, if we were to be true to non-violent resistance to the extent to which we wanted to go. The Working Committee has accepted this phraseology deliberately, well knowing its implications. The result is this: If we can get a declaration from the British Government that the Congress can carry on anti-war propaganda, and preach non-co-operation with the Government in their war effort, we will not have civil disobedience.

I do not want England to be defeated or humiliated. It hurts me to find St. Paul's Cathedral damaged. It hurts me as much as I would be hurt if I heard that the Kashi Vishvanath temple or the Juma Masjid was damaged. I would like to defend both the Kashi Vishvanath temple and the Juma Masjid and even St. Paul's with my life, but would not take a single life for their defence. That is my fundamental difference with the British people. My sympathy is there with them nevertheless. Let there be no mistake on the part of Englishmen, Congressmen, or others whom my voice reaches, as to where my sympathy lies. It is not because I love the British nation and hate the German. I do not think that the Germans as a nation are any worse than the English or the Italians are any worse. We are all tarred with the same brush; we are all members of the vast human family. I decline to draw any distinctions. I cannot claim any superiority for Indians. We have the same virtues and the same vices. Humanity is not divided into watertight compartments so that we cannot go from one to another. They may occupy one thousand rooms, but they are all related to one another. I would not say, 'India should be all in all, let the whole world perish.' That is not my message. India should be all in all, consistently with the well-being of other nations of the world. I can keep India intact and its freedom also intact only if I have goodwill towards the whole of the human family and not merely for the human family which inhabits this little spot of the earth called India. It is big enough compared to other smaller nations, but what is India in the wide world or in the universe?

Let there be no mistake as to what I am about. I want my individuality to remain unimpaired. If I lose it, I would be of no service to India, much less to the British people, still less

to humanity. My individual liberty is the same as the nation's, convertible with national liberty. I do not claim any greater liberty for myself. Hence my liberty is equal to the liberty of all of you and no greater. I feel that, if my liberty is at stake, yours is also at stake. I claim the liberty of going through the streets of Bombay and say that I shall have nothing to do with this war, because I do not believe in this war and in this fratricide that is going on in Europe. I admire the bravery. But what is the use of this bravery? I deplore the foolishness and the class ignorance. These people do not know what they are fighting for. That is how I look at this war that is going on across the seas. I cannot possibly take part in it. Nor do I want the Congress to do so.

The part that I would like to take is the part of peacemaker. If the British people in their wisdom had recognized the independence not of the Congress but of all India, and if other parties in India had also co-operated with us, we would have taken the honourable place of peacemakers between these nations. Such is my ambition. But today I know that it is a day-dream. But sometimes a man lives in his day-dreams. I live in mine, and picture the world as full of good human beings — not goody goody human beings. In the Socialist's language, there will be a new structure of society, a new order of things. I am also aspiring after a new order of things that will astonish the world. If you try to dream these day-dreams, you will also feel exalted as I do.

And now I come to our 'tin-pot' Congress — tin-pot in the estimation of others, not my own. If we do not take care, the Congress will disappear, and if the Congress disappears, the national spirit disappears. One after another Congressmen are being selected and jailed. It is not *satyagraha* to watch people being taken away. It is much better for all of us to rush into the jaws of the opponent. After all, as the Maulana Sahab once said, India is a vast prison. Let us get out of this slave-prison by breaking the prison bars. He said to the Sikhs at the time of the Nankana Sahab tragedy: "You may protect one *gurudwara*; but what about vast *gurudwaras* that is India? We have to deliver it from bondage." Those words ring true even today in my ears. If this liberty of the nation or the movement for freedom is likely to be choked, then I say that the virtue of self-

restraint is going to become a vice. That virtue of restraint cannot be carried to the extent of the extinction of the national spirit wherever it may reside, whether among Congressmen or non-Congressmen.

I do not want to hurl civil disobedience or anything in the face of the Government without making my meaning clear, the meaning I attach to the sum total of Government actions—actions beginning with the declaration of the Viceroy, the statement of the Secretary of State for India, and the series of actions and the policy that the Government have pursued since. The sum total of all these has left an indelible impression on my mind that there is something wrong, some injustice being perpetrated against the whole nation, and that the voice of freedom is about to be stifled. This is implied in the resolution, not in the exact language which I am using now, but you will see the meaning clear as daylight.

In order completely to clarify our position, I propose to approach the Viceroy with a request that he will be good enough to see me, and I have no doubt that he will. I will place my difficulties before him; I will place the Congress difficulties before him. I will approach him in your name. I will tell him that this is the position to which we have been reduced: We do not want to embarrass you and deflect you from your purpose in regard to war effort. We go our way, and you go yours, undeterred, the common ground being non-violence. If we carry the people with us, there will be no war effort on the part of our people. If, on the other hand, without your using any but moral pressure, you find that the people help the war effort, we can have no cause for grumbling. If you get assistance from the Princes, from the Zamindars, from anybody high or low, you can have it; but let our voice also be heard. If you accept my proposal, it will be eminently honourable, it will certainly be a feather in your cap. It will be honourable of you, although you are engaged in a life and death struggle, that you have given us this liberty. It will be honourable of you that you take this great step, although you have limitless powers to choke our voice; and that you give us the fullest possible freedom, consistently with the observance of non-violence, to tell the people of India not to join the war effort.

Let the people use any reasoning they like for refusal to help the war effort. My reasoning is the only one which will sit well on Congressmen's lips. But I do not expect all to restrict themselves to that reasoning. Those who have conscientious objection, as I have, will adopt my reasoning. Those who are tired of British imperialism will use that argument. There may be others who will have other arguments. All these should be covered under this freedom of speech, provided, however, that they all accept non-violence, provided also that what they say is said openly and not secretly. These are the implications of my generalship. If these do not satisfy you, you must reject this resolution summarily. So long as you can preach non-co-operation with war effort in men and money, there should be no civil disobedience. But if you have not that liberty, there is no Swaraj but perpetual bondage. I would like the British people and the Viceroy to be able to tell the world that they have given the leaders of the Indian people liberty to preach to their people what they like. The British can then say to the world: "Judge us by our conduct. Here in India we are playing the game."

I do not mind the British not responding to the Delhi resolution. They may say, "At the present moment you cannot interfere with the management of affairs as they stand. Deliberance will come to you in its own time. At this critical juncture do not worry us." I will understand that argument. I will sympathize with it. I will hold my hand so long as there is no fraud or falsity in what they say. It is impossible for them to give us freedom. If freedom has got to come, it must be obtained by our own internal strength, by our closing our ranks, by unity between all sections of the community. It cannot descend from heaven, nor can it be given as a gift from one nation to another. I do not know whether I am representing the feelings of the members of the Working Committee, because I have not discussed these things with them. But you have to take me with all my limitations, with the workings of my mind.

The Viceroy may say, "You are a visionary." I may fail in my mission, but we will not quarrel. If he says he is helpless, I will not feel helpless. I will make good my position. I cannot sit still when I see Ram Manohar Lohia and Jaiprakash Narain in jail, than whom I do not know braver or straighter men. They

have not preached violence, but simply carried out the behests of the Ramgarh resolution. It was a point of honour with them.

I have restrained myself, and will restrain myself. I will not seek imprisonment. I do not want to offer civil disobedience. I will not place myself in peril. In this battle I will not expose myself to imprisonment. But if the Government chooses, it will not be difficult to take me away. I will not be able to seal my lips or restrain my pen. It will be difficult for them to keep me in prison, not because India will rise in rebellion. India will be wrong, if it does so. My own instinct is that they will not be able to keep me in jail.

I will place my argument before the Viceroy. I may fail in my mission. But I have never approached a mission in despair. I may have approached it with the consciousness that I may be faced with a blind wall. But I have often penetrated blind walls. I shall approach the Viceroy in the confidence and hope that he will understand the great reasonableness of the request of the Congress for full liberty to preach 'no war' in India. Every one should have perfect liberty to preach by pen and tongue: 'We cannot aid imperialism, we cannot help spoliation.'

I shall strain every nerve to avoid *satyagraha* in your name. What shape it will take, when it comes, I do not know. But I know that there will be no mass civil disobedience, because mass civil disobedience is not required for this occasion. I have impenetrable darkness before me regarding the future course of action. I have no mysteries. I do not know how I shall lead you, what action I shall put before you. I hope that any action that we may take will be worthy of the Congress traditions and of the occasion.

I have often said that I do not know the Congress mind as I have buried myself in Sevagram. It is because of the Congress difficulty that I have dragged myself to Bombay, and immediately I am released from this duty you will find me in Sevagram. But I have got strength and resourcefulness enough to lead this battle, although I am buried in Sevagram. I shall do better and clearer thinking in Sevagram than anywhere else, simply because I have built up there an atmosphere for my growth. With the march of time my body must decay but, I hope, not my wisdom. I seem to see things more clearly with

the advance of age. It may be self-deception, but there is no hypocrisy. Self-deception is good sometimes in that it helps one to remain cheerful and not to give way to despair. It will be, therefore, wrong of you to drag me from Sevagram; and I promise that I shall give a good account of my stewardship.

There are many parties in the Congress. We are not all of the same opinion. There is indiscipline in the Congress. I know it is inevitable in a mass organization which is growing from day to day. If it is all indiscipline and no discipline, the organization is on the downward path. Let it not be said of you that you come to the Congress although you do not believe in non-violence. How can you possibly sign the Congress pledge with violence in your breasts? I want complete obedience to the policy of non-violence. While the policy lasts, it is the same as though it was a creed, for so long as it holds good it is as good as a creed. My creed holds me for life; yours so long as you hold it. Resign from the Congress, and you are free from it. Let us be clear regarding the language we use and the thoughts we nurture. For, what is language but the expression of thought? Let your thought be accurate and truthful, and you will hasten the advent of Swaraj even if the whole world is against you. You will have won Swaraj without having to spend nine million pounds a day or without burning a single home. If you are true to your policy, I am sure that without doing any of these things you will build up the majestic edifice of freedom.

Now for the violence party. Do not mix up the methods, if you can help it. You have restrained yourselves for some years. Restrain yourselves for some more years. Ours is not a small battle. If you restrain yourselves, you will lose nothing.

Freedom of speech and pen is the foundation of Swaraj. If the foundation-stone is in danger, you have to exert the whole of your might in order to defend that single stone. May God help you.

Harizan, 29-9-1940

Selected works of Jawaharlal Nehru

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Jawaharlal Nehru in 1939

JAWAHARLAL NEHRU IN 1939

been arrested and severe restrictions placed on public and labour activities in some parts of India. This is the old way which has failed in the past and is bound to fail again.

India wants to forget the past of conflict and wants to stretch out her hand in comradeship. But she can do so only as a free nation on terms of equality. She must be convinced that the past is over and we are all striving for a new order not only in Europe but also in Asia and the world. Her invitation to the British Government is not only on her behalf but for all those in the world who believe in peace and freedom and democracy. It will be tragedy for all of us if the deep significance of this gesture is not appreciated and full response not made to it. Such a response will hearten people all over the world and will be a greater blow to Nazism than a victory on the battlefield.

19. To Lord Linlithgow¹

Wardha
October 6, 1939

Dear Lord Linlithgow,
Mahatma Gandhi has told me of your concern about certain developments in the U.P.² and has suggested that I might write to you on the subject. I gladly do so, though it is not an easy matter to discuss such charges without having all the facts. But I am generally acquainted with conditions in my province and know the various forces and tendencies at work. I am also personally acquainted with large numbers of Congress and other workers in the U.P. I should like to place before you certain considerations which might help in understanding the situation.

The U.P. is a large province and, from the point of view of the masses, probably the most wide-awake in the political sense. The Congress organisation is widespread and reaches the remotest villages. There are, I believe, about 70,000 members of various small executive committees of the Congress in the province, apart from our ordinary members. The very magnitude of this organisation, built up on a democratic basis, and allowing free discussion and local initiative, makes it a

1. J.N. Correspondence, N.M.M.L.
2. The Viceroy had written to Mahatma Gandhi expressing his uneasiness at the political atmosphere in the United Provinces.

little difficult to control all its local activities from the top. We want to have discipline but not at the cost of crushing local initiative which gives life to the organisation. As a matter of fact we have a surprising degree of discipline and all decisions made at the top are faithfully and willingly carried out, though we have no effective means of enforcing them.

This vast organisation is active and is holding innumerable public meetings in towns and villages. A subject that has engrossed public attention in the U.P. has been the Tenancy Bill.³ On this subject we must have held thousands of meetings in rural areas explaining the provisions of the bill. The peasantry have been eagerly expecting the passage of this bill and have lived in this hope for two years. It is this hope which has kept them more or less quiet during this period when otherwise there might have been a great deal of trouble. That bill has just been passed by the provincial legislature and now awaits your assent. On the 15th October the province will celebrate the passage of the bill and I expect that between 1,500 and 2,000 public meetings will be held on that day for the purpose. May I here express the hope that this bill will receive your assent at an early date and will become law, as this will go a long way towards easing the situation in the U.P.? It is the agrarian situation in the U.P. that matters ultimately; other developments are relatively unimportant.

I should like you to consider the complaints received of speeches or other activities in the U.P. in the perspective of these manifold activities. If so considered, they will be seen for what they are worth; a few speeches out of hundreds or thousands.

The second point I should like to place before you is the nature of the reports usually received by the government from its secret agents. Even when *bona fide*, they are often based on informers and not over-intelligent persons. There is a tendency to exaggerate or dramatise ordinary occurrences and to attach undue importance to them or to the words of excitable youths. Still I think there is a core of truth in what has been reported and, so far as I know, the U.P. Government is fully alive to the situation and is prepared to take action whenever any overt act takes place. In the nature of things it is reluctant to take action on hearsay. I understand that action has been taken in some instances.

We are going through a transitional period and have to carry the legacy of an unfortunate past of conflict, and the present and future are

3. The U.P. Tenancy Bill provided for hereditary rights to the tiller of the soil, reasonable rents and ejectment only if certain conditions were satisfied. It was passed by the Legislative Council on 16 September 1939 and by the Assembly on 4 October 1939.

uncertain. A democratic government cannot function like the old governments which could ignore public opinion. It has to avoid repressive measures unless these are clearly indicated, for such measures do not cure the disease and often make it worse.

I think it is true that during the first few days of September a number of very undesirable speeches were delivered in the U.P. The sudden coming of war upset the balance of many people and unloosed their tongues. No clear direction was given for some days as to what the Congress attitude was going to be. As soon as the attention of the provincial Congress was drawn to these speeches etc., immediate action was taken both by public statements and circulars and private letters to stop this development, and this action had a marked result and was followed by a definite improvement. I understand that government also took some action.

One name was mentioned to me, that of Shibban Lal Saksena,⁴ whose activities were specially objected to. This gentleman is a Congress M.L.A. and is one of our most honest and hardest working members. He takes his duties as M.L.A. very seriously and is continually touring about his constituency in Gorakhpur. I must confess that he is crude of speech and occasionally his tongue runs away with him when he discusses the plight of the peasantry. We have warned him privately several times and our advice has had effect on him. His speeches were examined recently by officials and though thought undesirable were not considered actionable. His chief offence seems to be the intensity with which he works among the peasantry. He has unfortunately not been on good terms with the district officials of Gorakhpur.

I trust that what I have written may prove of some help in the understanding of the U.P. situation. This situation is serious in many ways but not in the sense of the police reports, although there is some basis for the latter.

This letter, written in the train to Wardha, has grown long. But I want to add a few words to it and to tell you how much I desire that the long conflict of India and England should be ended and that they should co-operate together. I have felt that this war, with all its horrors, has brought this opportunity to our respective countries and it would be sad and tragic if we are unable to take advantage of it. None of us, in India or England, dare remain in the old grooves or think in terms of past conditions. But events are moving so fast that sometimes

4. (b. 1907); member, U.P. Legislative Assembly, 1937-46 and 1964-67, of Constituent Assembly, 1946-50, and of Lok Sabha, 1954-62 and again since 1971; was a prominent trade union leader specially in the field of sugar industry.

I fear that they will overtake our slow moving minds. There are all the elements of a Greek tragedy in the world situation today and we seem to be pushed along inevitably to a predestined end. You told me that I moved too much in the air. Probably you are right. But it is often possible to get a better view of the lie of the land from the heights than from the valleys. And I have wandered sufficiently on the solid earth of India and mixed with the people who labour there to think of India in earthly terms.

May I say how much I appreciate your friendly courtesy to me? It was a pleasure to meet you for a second time, and whenever chance offers an opportunity for this again, I shall avail myself of it. But whether we meet or, as you once said, look at each other from a distance over a gulf that has not been bridged, we shall do so, I earnestly trust, with no trace of unfriendliness, and realising the difficulties which encompass us and which compel us to pursue different paths.

Yours sincerely,
Jawaharlal Nehru

20. To Govind Madgavkar¹

Wardha
October 6, 1939

My dear Sir Govind,

I have just received your letter of the 2nd October.² I think you will find that the Congress position as explained in the Working Committee statement and subsequently, goes further than your suggestions. It demands a clear declaration of India's independent status and India's right to frame her own constitution through a constituent assembly. Further it says that this must be applied in the present to the largest possible extent, both in the governance of India and in the control of war so far as India is concerned. This inevitably means India's control

1. J.N. Correspondence, N.M.M.L.

2. Madgavkar had suggested that even if no constitutional changes could be introduced till the end of the war the Congress should ask for the Indianization of the army on the basis of linguistic provinces. He also objected to the use of the words "new order" in the Working Committee resolution.

the objective of full responsible government and give effect to it in the largest possible measure in the immediate future. The rulers can expect no cooperation from the people unless fundamental changes are made and the government is made popular and responsible.

The second statement enumerates repression, and suppression of civil liberties in numerous states.

Jawaharlal

27. Kisan Day¹

Two and a half years ago general elections were held at which the kisans chose their representatives and since the latter's election they busied themselves with their first duty—that is the legislation relating to kisans. They wanted the present zamindari and land system to be changed at once but if that could not be achieved soon they wanted that something at least should be done to lighten the burden of the kisans. Therefore the first question before the kisan representatives in the Legislative Assembly was how to change the tenancy legislation. Many put obstacles in the way of amending the legislation. They said that great injustice was being done to them by the proposed amendment but they forgot who had been doing injustice for 100 or 200 years. Eventually the Tenancy Bill was passed in the U.P. Assembly. When it went before the Council, the Council made some amendments. The Congress did not like those amendments but it was felt that if we opposed those amendments, though we would certainly have won, the legislation would have been delayed by a year or so. Eventually the Bill has been passed by the legislature and now the signature of the Governor remains to be given to it.² That is a matter of days and the object of the kisan day is to hold meetings all over the province to explain the new legislation and to urge that it should be enforced at once.

1. Speech at Allahabad, 15 October 1939. From *The Leader*, 19 October 1939.
2. Sir Harry Haig, the Governor, gave his assent on 7 December 1939 and the Bill was implemented on 1 January 1940.

I hope that when the voice of the kisans reaches the proper quarters the assent to the Bill will be forthcoming.

I trust that the new Tenancy Bill will become law but the injustice to the kisans will not stop until you become organised, for if you are not organised even the new law will be thrown overboard by the zamindars. It is, therefore, necessary that you should be so organised as to be able to face and oppose anything which might be done against law. After the present legislation, many things remain to be done. But with this legislation you have taken a great step forward and it is for you, the kisans, to strengthen your *sangathan* to make further steps easy.

War has broken out at last and the British Government has involved India also in the war. That they did so without consulting us is not right. The Congress has asked the British Government to recognise our right to Purna Swaraj and to frame our own constitution through a constituent assembly. We do not want the legislation to be changed at once but we desire that during the transition period they should transfer the reins of government at once into the hands of the people's representatives. That is, we want the recognition of our right to Purna Swaraj and the laying of the foundation of it now. Then only will we have confidence in the British Government and will participate in the war. Questions to this effect were put to the British Government but no reply has been given as yet. I think that a reply will be given to us in two or three weeks because the uncertain situation cannot continue for long.

A peculiar position has arisen as regards the present war. In the first place our sympathies are not with the Germans; secondly, until we get a reply from the British Government to our resolution, we are not prepared to help them; thirdly, as we are waiting for the reply we do not want to oppose the war. At present we have to keep aloof, neither cooperating nor opposing.

The questions which the Congress has put to the British Government are not only for the benefit of India but the whole world and many people in other countries have also appreciated them so that they might know what was the real aim of the war. Many Englishmen in England are also pleased over these questions because they are also in their minds. Therefore, in a way the Congress has taken that step in the interest of the whole world and thus our prestige has risen in the eyes of the world. If, in reply, our right to Purna Swaraj is recognised and the foundation for it is laid, India will undergo a great change and we should be prepared to take up the reins of the administration. If it is not recognised, we might have to revive satyagraha and for that also we should keep in readiness; and preparedness for that will come with

your *sangathan*. I warn you to guard yourselves against such petty things as Hindu-Muslim quarrels for kisans' legislation. Swaraj will be for all and not for any particular community. The doors of the Congress are open to all.

28. To Rajendra Prasad¹

Allahabad
October 16, 1939

My dear Rajendra Babu,

Your letter of the 13th.² I think that it will not be correct for you to say that Jinnah has banged the door by his reply to your suggestion for an appointment of an impartial judge. His reply was not helpful, but it applied to a particular subject. I find that Maulana is also of this opinion. I am going to Lucknow tonight and shall have a further talk with him. I suggest that you might await further communications from him before you take any action.

Some friends of ours who are not Congressmen (they are professors of the university here) made a suggestion yesterday which appeals to me. They said that it would be worth while for us to fix a particular day when meetings all over India might repeat and endorse the A.I.C.C. resolution on the crisis. I think this will be good from many points of view. Our position is somewhat peculiar. We have had our say and now we have to wait for a reply. Meanwhile the tension in the country remains and excitement increases. Unless we attract people's attention in a particular direction we shall become completely passive spectators of events. We must carry on some activity. In the U.P. we have been fairly active, chiefly in connection with the Tenancy Bill. To these we added on a reference to the present situation. We had yesterday a very large number of meetings all over the province. In the district of Allahabad there were over 60 meetings. I attended four of them. I shall consult Maulana on this subject tomorrow in Lucknow and I am writing to Vallabhbhai also.

1. J.N. Correspondence, N.M.M.L.

2. Along with his letter of 13 October, Rajendra Prasad had enclosed a letter to Azad in which he had said: "You also know that our suggestion for an enquiry by an impartial judge into the allegations against Congress Ministries has been rejected by Mr. Jinnah who has practically barred the door for the present at any rate."

I have been receiving some news from England by letters and have also had long talks with Edward Thompson who has just come to India by air. I gather from all these that our statement and resolution have created some stir in political and journalistic circles in London. But much remains to be done to make the people at that end realise the gravity of the situation. To some extent the very moderation of our language has led them to believe that we do not mean any action. Then, of course, there is the belief that Gandhiji having offered unconditional cooperation for the war,³ it is quite inconceivable that the Congress will ultimately come into conflict with the British Government. Gandhiji's name is used frequently in this connection. A phrase that has been used there was repeated to me. It was stated that the two major difficulties in the way of the Congress taking any aggressive step were the Muslim League and Gandhiji. All this sounds rather absurd here but that is the way people are talking in London.

The one thing that threatens the British Government more than anything else is the reaction of events in India on American opinion. On no account do they want American opinion to be alienated and they fear greatly that any conflict in India would lead to the stiffening of the American attitude towards the British Government. I am sending copies of this letter to Gandhiji and Vallabhbhai.

Yours sincerely,
Jawaharlal

3. Commenting on the Working Committee's resolution on war, Mahatma Gandhi had written on 15 September 1939: "I was sorry to find myself alone in thinking that whatever support was to be given to the British should be given unconditionally."

The Viceroy has spoken² and the British Government has given its answer to India's questions. What were those questions that the Congress put, not on behalf of itself only, not only on behalf of the hundreds of millions of India, but for vast numbers of human beings all over the world, who were sick and weary of war and violence, of fascism and imperialism and all their ugly and numerous progeny, and hungered for a new order and peace and freedom? "The Working Committee invite the British Government to declare in unequivocal terms what their war aims are in regard to democracy and imperialism and the new order that is envisaged, in particular, how these aims are going to apply to India and to be given effect to in the present. Do they include the elimination of imperialism and the treatment of India as a free nation whose policy will be guided in accordance with the wishes of her people?"

We have the answer now. The Viceroy "is authorised by His Majesty's Government to say that at the end of the war they will be very willing to enter into consultation with representatives of several communities, parties and interests in India and with the Indian princes with a view to securing their aid and cooperation in framing such constitutional modifications as may be deemed desirable." Further he announces the immediate establishment of a consultative group of all major political parties in British India and of the Indian princes which will associate public opinion with the conduct of the war. In order to comfort us still further, we are told that the pledge given in the preamble of the Act of 1919 still holds:³

1. Lucknow, 17 October 1939. Editorial in the *National Herald*, 18 October 1939. Reprinted in *China, Spain and the War*, (Allahabad, 1940), pp. 182-187.

2. On 17 October 1939, the Viceroy announced that at the end of the war, Dominion Status would be granted and the Government of India Act modified to the extent deemed necessary by the British. As for self-government, the situation must be faced in terms of world politics, political realities and practical considerations.

3. This declared that the policy of Parliament was "to provide for the increasing association of Indians in every branch of Indian administration, and for the gradual development of self-governing institutions, with a view to the progressive realisation of responsible government in British India as an integral part of the Empire."

We would hesitate ordinarily to comment in haste on these pronouncements for the gravest issues are at stake, and it is right and proper that India's rejoinder should be given by the Congress Working Committee. We presume that the Committee will meet soon and give the only lead to the country that seems possible now. But while it is our privilege to carry the message of the Congress to our readers, and to discipline ourselves and the nation in the pursuit of our objectives and ideals, we may not remain silent even for a day when a challenge has been thrown out to the Indian people, and to the ideals we have cherished for so long.

The last six weeks have seen the elimination of a nation from the map of Europe and the crushing of a proud people. That has been a major occurrence, full of tragedy, and yet it is but a minor prelude to the vast and cataclysmic changes that are taking place before our eyes. Hitler, who dreamed of dominion over Europe and possibly the world, has been compelled by force of circumstances to give up that dream and to submit to the superior might of Soviet Russia. The south-east of Europe lies beyond his reach now, the Baltic states and the Baltic Sea are dominated by Russia.⁴ Half Poland has gone and Nazi Germany, with all her armed might, plays second fiddle and lives in fear of what may come.

This is the beginning, the first fruits of the war. What will follow in the months and years to come we can only dimly see now, but only the blind can imagine that the present-day world of empires and colonies and dependencies will survive the holocaust of war. The world of yesterday is dead, the world of today is dying and not all the king's horses nor all the king's men will be able to keep it alive. The new world may be good or bad, but it will be entirely different from the old.

Every man and woman of intelligence has some realisation of these profound changes that are taking place in this era of war and revolution. But not so the British Government and not the Government of India. They live in Whitehall and New Delhi apart from humbler, though perhaps more intelligent folk, and they neither see nor remember. In 1939 they remind us of a preamble of the Act of 1919. For them these twenty years have been but a bad dream that is no more, and though the world may crash and go to pieces, who dare touch the sanctums of Whitehall or New Delhi? But we remember that even in

4. On 28 September 1939, the German-Soviet Boundary and Friendship Treaty was signed. It partitioned Poland between the two countries and gave the Soviet Union a free hand in the Baltic states. By 10 October 1939, Estonia, Latvia and Lithuania had been induced to accept Russian garrisons at key points on their territories. They also entered into trade agreements with the Soviet Union.

1919 the preamble was indignantly rejected by the Indian people, that three times since then we have faced the might of the British Empire, unarmed and peaceful and clad in simple homespun, but strong in the strength of our millions, and proud of the spirit of our people and of the ideals we cherished. We remember that in 1935 yet another Act was imposed upon us and the old Act of 1919 was consigned to oblivion. This new Act also we rejected. And now the old preamble of 1919 is fished out of the dustbin and presented to us by His Excellency the Viceroy as a gift worthy of England, fighting for democracy, and worthy of India, insistent on independence.

Need we examine any other parts of the Viceroy's statement? We asked for independence and are promised a consultation at the end of the war for such constitutional modifications as may be deemed desirable.

Perhaps we were foolish in asking our questions. Yet we do not think so, for there is no one in India now, and few, we imagine, in the world who will be deceived by British professions of a war for democracy and freedom. We know now, beyond a peradventure, that Britain clings to her imperialism and fights to preserve it, howsoever her statesmen may cover this ancient habit of theirs by soft and pleasing words. What of the British Labour Party now and all those radicals and lovers of freedom in England who talk so eloquently of the brave new world that is coming? What of America, that great land of democracy, to which imperialist England looks for support and sustenance during this war? Does Britain think that the people of the United States will pour their gold and commodities to make the world safe for British imperialism? What of the free dominions of the British Commonwealth, who have been charmed by brave phrases and made to come to Britain's aid? How will they like this exposure of the reality that lies behind those phrases? The aims and objectives of this terrible war are clear at last, in so far as the present British Cabinet is concerned. Let no man doubt them.

The Congress asked a question, but in asking that question it also gave its own answer—that answer stands. We can never be parties to supporting imperialism. The issues are clear and so are we in our minds. This is not a matter for Congressmen only but for all of us, whether we belong to the Muslim League or Hindu Mahasabha or Sikh League or any other organisation of Indians. For India's honour and India's freedom are involved and nothing else can count where these supremely vital issues are at stake.

The Viceroy has told us to think of the unity of India. His Excellency's reminder was not necessary. But even the unity of India cannot

be purchased at the cost of India's freedom. We want no union of slaves in bondage. We want a united India but a free India, and we have no shadow of doubt that we shall get what we want. Meanwhile we may have to go into the wilderness again, as we have so often done in the past. If the fates so will it, we shall do so gladly, rejoicing that yet again we have been privileged to serve the cause that is dearer to us than everything else. And in doing so we shall help in building the new world order for which millions crave—an order of peace and freedom from which fascism and imperialism have been eliminated, and the days of war and violence are no more.

30. The Reply of the Congress¹

We have read the Viceroy's statement with deep regret. If this is the final answer of the British Government to the people of India, then there is no common ground between the two, and our paths diverge completely.

The whole statement is a complete repudiation of all that India stands for nationally and internationally. It is a statement which would have been out of date twenty years ago; today it has absolutely no relation to reality. There is no mention in it of independence, freedom, democracy or self-determination; no attempt even to justify the dragging of India into the war without a reference to her people and her being forced to join an adventure for objectives which are not hers. These objectives appear clearly from the Viceroy's statement to be preservation and maintenance of the British imperial and financial structure, in India and abroad. The "better international system" to which the British Premier has referred is evidently meant to preserve and strengthen this structure. Apart from this, it relates, according to him, to peoples of Europe and not to Asia or Africa. India continues where she is; the colonies remain where they are; imperialism is still meant to flourish.

All this seems to follow from the Viceroy's statement, and if this is the aim of the war, it is difficult to imagine that even the British Government, living as it does in an age that is past and done with, can expect any self-respecting Indian to cooperate with it. The hand of

1. Joint statement issued by Maulana Azad and Jawaharlal, Lucknow, 17 October 1939. *The Hindu*, 18 October 1939.

has not been accepted. It is impossible for India to pour out her men and money into a struggle which will not result in her complete emancipation from her shackles.

I appeal to you to end your small differences and prepare for the big struggle ahead. Do not fritter away your energies but carry on your allotted tasks with discipline and unity.

40. Clearing the Decks¹

During the last six weeks much has happened in India. Soon after the outbreak of the war various individuals, high and not so high, expressed their opinions on Nazi aggression and there was widespread condemnation of it. There was also considerable sympathy for the Polish people in their sad plight. Mahatma Gandhi spoke forcibly² and other leaders condemned Nazi aggression. It is evident that the British authorities were greatly relieved by these various statements and came to the conclusion that India could be taken for granted in anything they did in connection with the war or in this country. They did not realise that our condemnation of Nazism and aggression in Poland had nothing to do with our established policy of opposition to imperialism and the latter perforce continued. They did not appreciate that Congressmen have developed a certain discipline among themselves and, in courtesy to their colleagues and in deference to their organisation, they refrain from giving pointed expression to their individual views on vital matters which involve action. They forgot that we have cultivated a habit of being moderate in language but strong in any action that we might decide upon. In particular, they have not, in spite of a quarter of a century's experience, understood that behind the friendliness and courteous approach of Gandhiji, there is the man of steel who does not bend on any vital matter affecting India's freedom.

1. Editorial in the *National Herald*, 31 October 1939. Reprinted in *China, Spain and the War*. (Allahabad, 1940), pp. 212-217. Also in *The Unity of India*, (London, 1941), pp. 343-346.
2. On 5 September 1939, Mahatma Gandhi said: "It almost seems as if Herr Hitler knows no God but brute force. It is in the midst of this catastrophe without parallel that the Congressmen and all other responsible Indians, individually and collectively, have to decide what part India is to play in this terrible drama."

Then came the Congress Working Committee's statement of September 14th crystallising nationalist opinion and giving clear expression to it. That statement immediately evoked a remarkable response in India. What innumerable people had been feeling vaguely in their minds and hearts was clarified and put down in stately language. Doubts were resolved, many a perplexity vanished, for it seemed that the people of India had found voice and pointed to the world the inevitable path which had to be followed if our present-day problems were to be solved. And the world listened in spite of attempts of censors and the like to suppress this remarkable appeal. The progressives in England hailed it; in democratic America it received considerable publicity; even in war-ridden Europe it evoked a response. Peoples of suppressed and subject nations saw in it a charter for the oppressed. It was in tune with the spirit of the times and whether governments listen to it today or not, they will have to pay heed to it before long.

All that has happened since then has been a logical development of that invitation of the Congress Working Committee for a clarification of war aims. Lord Zetland's speech, the A.I.C.C. meeting, the Viceroy's statement, the Muslim League's resolutions, the House of Commons' debate, and now the war resolutions in the provincial assemblies and the inevitable resignations of the Congress ministries,³ have all followed each other in ordered sequence, throwing a flood of light on the Indian scene.

What does this light show us? First of all, the high statesmanship and wisdom of the Congress which stands justified today before India and the world. Holding to its ideals and its previous declarations, it has applied them to changing and difficult circumstances, and thus demonstrated that it has the capacity to be idealistic and practical at the same time. The freedom of India, for which it stands, has been woven into the larger picture of world freedom and war and peace aims, and a practical solution offered for the world's ills.

Secondly, the true nature of this war has become evident. The reply of the British Government to the Congress shows, beyond a doubt, that they are moved now, as before, by a desire to preserve their imperialist interests. This is no democratic war in which the forces of democracy are ranged on one side against the forces of Nazism and reaction on the other. True, there are some democratic forces on the side of the Allies, but the governments that control the destinies of England and France

3. In each of the Congress provinces, except Assam, the assembly passed a resolution similar to that of the 14 September resolution. Thereafter all the ministries resigned one by one.

are the old discredited governments which must bear responsibility for the present unhappy state of Europe. We cannot forget Munich and Spain. Today the French Government is a citadel of reaction, and need we say more about the British Government than that Mr. Neville Chamberlain is still the Prime Minister? We knew all this. And yet it was necessary that all doubt should be removed from the minds of the people and the reality should emerge out of the fog of war.

That reality has come and it is not beautiful to look at, and not all the fine phrasing of Sir Samuel Hoare can rejuvenate the aged and the decrepit. Imperialism is a tottering structure today, wholly out of place in modern conditions, but the British ruling class still think in its terms and seek to preserve it. They are even afraid to make a clear declaration about India's freedom. That imperialism is not in love with the minorities or even the princes (though it utilises both to serve its main purpose); it is mainly concerned with British financial and other vested interests in India.

It is an axiom of Indian politics that there can be no compromise between imperialism and Indian nationalism and freedom. Whatever the phase of our struggle that hostility has continued. The Congress offer was that imperialism should be ended, the independence of India recognised, and thus this age-long hostility should give place to friendship and cooperation. That offer has been rejected and we go our separate ways till fate or circumstance unites them again.

Thirdly, the position of the Muslim League has been cleared up beyond any possibility of misunderstanding. We had welcomed the League's acceptance of independence as its objective three years ago and the widening of the basis of its membership. But we were soon to realise that the old politically reactionary outlook held the field still. Under cover of communal propaganda the Muslim masses were prevented from realising this. We are not for the moment discussing the communal demands of the League. They may be right or wrong. It is conceivable for a person to be a communalist and yet an ardent believer in political freedom, though at some stage or other a conflict will arise between these two loyalties. The Congress has often erred in the petty issues of politics, but it has always shown an unerring instinct whenever a major issue arose. The League, on the other hand, has a remarkable record of being wrong on the major issues, though it may occasionally be right on some trivial matter.

It is a tragedy that at this supreme crisis in our national history, the League should have sided with full-blooded reaction. We do not believe that many of its own members agree with this attitude. We are certain that the Muslim masses are firm adherents of Indian freedom.

In some communal matters the League may represent them, but it certainly does not do so in matters political.

The curtain falls. The Congress ministries go out. In all this flood of oratory in the U.P. Assembly there was the background of conflict between progress and reaction. The enthusiasm at the end gave us a glimpse of the true feeling of the U.P. and of the temper of its people. We have cleared the decks and await the action that may be demanded of us.

41. The Congress Leaves Office'

One by one the Congress ministries resign and retire from office and provincial autonomy functions no more. The Act of 1935 fades away and the country reverts to the autocratic or bureaucratic rule of the Indian Civil Service. Thus ends an experiment begun two and a half years ago. History will judge of this experiment and of the role that the Congress ministries have played. But whatever that judgment might be, we for our part are convinced that the acceptance of office, with all its difficulties and pitfalls, was a necessary preliminary to the larger freedom to come. It was necessary not because a training was required in the art of government, but because it laid bare many of the essential problems to be faced. It showed us our own failings as well as the failings of others. It demonstrated how difficult, if not impossible, it was for the present structure of government, with its steel-frame—the I.C.S.—to deal with our problems; how we were hedged and circumscribed in every way, and how even the best-laid schemes of popular ministers could be shelved or hung up by unimaginative or hostile subordinates. Burn your files, was the advice of Mahatma Gandhi² to the ministers, and in that

1. Allahabad, 31 October, 1939. Editorial in the *National Herald*, 1 November 1939.
2. An official of the Bombay Government had complained that there was no rest under the Congress ministry and that he did not know what to do with the ever-increasing pile of files. Mahatma Gandhi had promptly advised him to "burn them."

lay great wisdom. Files are perhaps necessary accompaniments to any ordered work, but a government which lives and thinks in files and cannot get out of this slow routine, is no fit and proper government for a country eager and anxious for innumerable changes and fast moving reforms in all directions. Gandhiji gave expression in his pregnant phrase to the conviction that the old method of government, even with popular ministers stuck in somewhere, was an anachronism today.

The possibilities of provincial autonomy had long been exhausted, and it was evident to any close observer, even before the war, that the *status quo* could not continue for long. There had to be either going forward or going back. Still, somehow, even these unstable conditions were allowed to continue for there was a reluctance to precipitate a conflict. But the shock of war came to upset the structure.

The Congress ministries go and we would fain hope that they will not come back on the old conditions. There is no going back for any country today, and certainly not for India. Those who think that the new order changes giving place to old will find the error of their thought before many moons have waxed and waned. Monday's scene in the U.P. Assembly, when the long debate ended and the war resolution was passed by an overwhelming majority, was a memorable one.³ It showed, as not even the arguments had done, the spirit of the assembly, and the true significance of the ministerial resignations. The ministers did not resign because they were defeated. That resignation was their triumph and the triumph of the Congress and as such it was treated by the members. Surely, seldom could such a scene of enthusiasm have been witnessed in any assembly. The Congress had freed itself from the trammels of office and from the bondage of the Act of 1935. It breathed freely again and stretched out its limbs in happy freedom. The journey may be a difficult and arduous one, but we had cut our shackles and could go swiftly forward.

What has been the main achievement of the Congress ministries? There have been many critics of them and we ourselves are not enamoured of all they have done or the manner of doing it. But a day will come when even the bitterest critic will recognise the signal service the Congress ministries rendered to the country in spite of innumerable

3. On 30 October 1939, the U.P. Assembly passed by 127 votes to 2, the Congress ministry's resolution on war. It voiced the feelings of regret which the Viceroy's statement of 17 October had produced in the minds of the Indian people. It also regretted that the British Government had made India a participant in the war without popular consent and had, in complete disregard of Indian opinion, passed laws and adopted measures curtailing the powers of the provincial governments.

difficulties and often the most unfair criticism. We are not going to appraise or criticise their work now. But whether they have failed in this matter or that, they have set a high standard of integrity, of devoted work and, we say in spite of criticism to the contrary, of impartial administration. The realisation of all this will come more fully in the days to come.

But most of all, people will realise what civil liberties they have enjoyed under the Congress ministries when they begin to lose them, as they soon will. For the establishment and maintenance of civil liberties has been the outstanding achievement of these ministries, many indeed there are who say that they went too far in this direction.

In the United Provinces we had the good fortune to have as Prime Minister a man of outstanding character and ability, and we, in common with innumerable others, would like to pay our tribute of respect and admiration to him.⁴ He was and is the perfect gentleman, loved by his colleagues and respected by his opponents. Illness has long pursued him. That is the price he is paying for his great and devoted services to the people of his province. We trust that he will triumph over this illness soon for the country and his province want his services in the difficult days to come.

It was a moving sight to see some of the ministers bidding farewell to their office staff. Many of them were in tears and even the humble *chhaprasis* wept as if something they had valued greatly was going out of their lives.

4. Govind Ballabh Pant.

42. To Lord Linlithgow¹

November 3, 1939

Dear Lord Linlithgow,

I thank you for your letter of November 2nd embodying in concrete form the proposition which you had placed before us when we saw you

1. Rajendra Prasad Papers, National Archives of India. Rajendra Prasad's letter to Linlithgow was drafted by Jawaharlal. The corrections made by Mahatma Gandhi are shown in square brackets. Jawaharlal's suggested lines which were deleted are in round brackets.

